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PUBLIC SERVICE COMMISSION OF WISCONSIN

Application of Wisconsin Electric Power Company for a Certificate of Public Convenience and Necessity to Construct and Operate the Paris Reciprocating Internal Combustion Engines Project, Consisting of Seven Natural Gas-Fired Reciprocating Internal Combustion Engines Generating up to 128 MW Total at the Lakeshore Capacity Improvement Project Regulator Station in the Town of Paris, Kenosha County, Wisconsin	6630-CE-316

FINAL DECISION

This is the Final Decision in the proceeding conducted by the Public Service Commission of Wisconsin (Commission) on the June 10, 2024 application of Wisconsin Electric Power Company (applicant) for a Certificate of Public Convenience and Necessity (CPCN) to construct and operate the Paris Reciprocating Internal Combustion Engines (RICE) Project (project) in the Town of Paris in Kenosha County, Wisconsin. The proposed project will consist of seven natural gas-fired reciprocating internal combustion engines, each generator having a nominal nameplate rating of approximately 128 megawatts (MW), for a total generation capacity of approximately 128 MW, and a 138 kilovolt (kV) generator tie line measuring approximately 3,600 feet in length. The estimated cost of the proposed project is approximately $279.6 million, excluding allowance for funds used during construction (AFUDC). The applicant estimates an AFUDC amount of approximately $23.7 million.

The CPCN application is APPROVED, subject to conditions and as modified by this Final Decision.

Procedural Background

On April 5, 2024, pursuant to Wis. Stat. § 196.491 and Wis. Admin. Code chs. PSC 4 and 111, the applicant filed with the Commission an application for a CPCN to construct the proposed project. The Commission found the application to be incomplete under Wis. Stat. § 196.491(3)(a)2. and Wis. Admin. Code PSC § 111.51 on May 3, 2024. On June 10, 2024, the applicant filed a revision of the application. The Commission found the application to be complete on July 10, 2024. (PSC REF#: 508108.) The Commission issued a Notice of Proceeding on August 15, 2024. (PSC REF#: 513647.)

On September 12, 2024, Administrative Law Judge (ALJ) Michael E. Newmark issued a Notice of Prehearing conference to be held on September 23, 2024. (PSC REF#: 516761.)

On September 13, 2024, ALJ Michael E. Newmark granted timely requests to intervene received from Citizens Utility Board of Wisconsin (CUB), City of Milwaukee, Clean Wisconsin, Inc. (Clean Wisconsin), Kenosha County, RENEW Wisconsin, Inc. (RENEW), Town of Paris, Wisconsin Industrial Energy Group (WIEG), and Wisconsin Local Government Climate Coalition (WLGCC). (PSC REF#: 516996.) The parties, for the purposes of review under Wis. Stat. §§ 227.47 and 227.53, are listed in Appendix A of this Final Decision.

The ALJ held a prehearing conference on September 23, 2024. (Tr. 1-20 PSC REF#: 517913.) On October 9, 2024, the ALJ issued a Prehearing Conference Memorandum establishing the issue, schedule, and other facilitating matters for this proceeding. (PSC REF#: 520541.)

The issue established in the Prehearing Conference Memorandum was:

A. Does the proposed project comply with the applicable standards under Wis. Stat §§ 1.11, 1.12, 196.025, and 196.491, and Wis. Admin. Code chs. PSC 4 and 111?

Wisconsin Stat. § 196.491(3)(g) requires that the Commission take final action within 180 days after it determines a CPCN application to be complete. If it does not meet this deadline, the application is approved by operation of law, unless an extension of no more than 180 days is granted by the Commission Chairperson. On October 11, 2024, the Commission Chairperson granted a 180-day extension, extending the deadline to July 7, 2025.[1] (PSC REF#: 521278.)

On November 26, 2024, CUB filed an application in docket 1-IC-568 for intervenor compensation to retain legal services and expert witnesses to contribute to the record in this proceeding. By Order dated February 27, 2025, the Commission approved CUB's application for intervenor compensation in the amount of $13,077. (PSC REF#: 534898.)

The proposed project is a Type I action under Wis. Admin. Code § PSC 4.10(1), Table 1. Type I actions are major actions involving requests for Commission approval that significantly affect the quality of the human environment within the meaning of Wis. Stat. § 1.11(2)(c). Such actions require the preparation of an environmental impact statement (EIS). Commission staff worked jointly with Wisconsin Department of Natural Resources (DNR) staff in preparing an EIS to analyze the potential environmental impacts of the project pursuant to Wis. Stat. § 1.11 and Wis. Admin. Code §§ PSC 4.30 and NR 150.20. On October 31, 2024, the Commission issued a draft EIS for the proposed project for comment. Commission staff accepted comments

[1] The extended 180-day deadline falls on Saturday, July 5, 2025. Pursuant to Wis. Admin. Code § PSC 2.05(2), the next day the Commission is open is considered the last day of the extended 180-day period for the Commission to take final action.

on the draft EIS and considered those comments in finalizing the EIS. On December 20, 2024, the Commission issued a final EIS. (PSC REF#: 527759.)

On December 18, 2024, the ALJ issued a Notice of Hearing scheduling both the party and public hearing sessions. (PSC REF#: 527341.) On February 5, 2025, the ALJ convened public hearing sessions in person and virtually for members of the general public. The public hearing sessions included two sessions held at a physical location, one in the afternoon and one in the evening on February 5, 2025, providing members of the public opportunity to submit oral testimony. (PSC REF#: 532344.) The Commission also accepted written comments from members of the public at the public hearing, through its website, and by U.S. mail. (PSC REF#: 533777.)

As noticed, the ALJ held the audiovisual party hearing session with no physical location on February 13, 2025. Tr. 267-314 (PSC REF#: 534926); Tr. 315-323 (PSC REF#: 536058 confidential, PSC REF#: 536059 public); Tr. 324-328 (PSC REF#: 534927); Tr. 329-347 (PSC REF#: 536060 confidential, PSC REF#: 536061 public); Tr. 348-538 (PSC REF#: 534928). At the party hearing session, expert witnesses offered testimony and exhibits on behalf of the applicant, CUB, Clean Wisconsin, RENEW, Town of Paris, WLGCC, and Commission staff. WIEG, the City of Milwaukee, and Kenosha County did not participate.

As noticed, the ALJ conducted these hearings as a Class 1 contested case proceeding pursuant to Wis. Stat. §§ 196.491(3)(b), 227.01(3)(a), and 227.44.

Initial briefs were filed by the applicant and by CUB, Clean Wisconsin, Town of Paris, and WLGCC on February 27, 2025. Reply briefs were filed by the applicant, CUB, Clean

Wisconsin, and WLGCC on March 13, 2025. The City of Milwaukee, Kenosha County, RENEW, and WIEG filed no briefs.

	Initial Briefs	Reply Briefs
Applicant	PSC REF#: 534929 confidential PSC REF#: 534930 public	PSC REF#: 536765 confidential PSC REF#: 536766 public
Clean Wisconsin	PSC REF#: 534909 confidential PSC REF#: 534910 public	PSC REF#: 536728 confidential PSC REF#: 536729 public
CUB	PSC REF#: 534921 confidential PSC REF#: 534922 public	PSC REF#: 536767 confidential PSC REF#: 536768 public
Town of Paris	PSC REF#: 534909 confidential PSC REF#: 534910 public	
WLGCC	PSC REF#: 534895	PSC REF#: 536754

The Commission discussed the record in this matter at its open meeting of May 22, 2025. (PSC REF#: 549570.) The Commission delegated authority to Commission staff, pursuant to Wis. Stat. § 15.02(4), to draft a final decision consistent with its discussion and authorized the Secretary to the Commission to sign the Final Decision on behalf of the Commission.

Findings of Fact

1. The applicant is a Wisconsin public utility engaged in providing electrical service in Wisconsin as defined in Wis. Stat. § 196.01(5)(a).

2. The applicant is proposing to construct an electric generation facility consisting of seven natural gas-fired reciprocating internal combustion engines, each generator having a nominal capacity of 18.8 megawatts (MW), for a total generation capacity of approximately 128 MW, and a 138 kV generator tie line approximately 3,600 feet long.

3. The total estimated gross project cost is approximately $279.6 million, exclusive of AFUDC.

4. Energy conservation, renewable resources, or other energy priorities listed in Wis. Stat. §§ 1.12 and 196.025, or their combination, are not cost-effective, technically feasible, or environmentally sound alternatives to the proposed project.

5. The facilities approved by this Final Decision will adequately address the present needs of the applicant's electric system and are necessary to satisfy the reasonable needs of the public for an adequate supply of electrical energy. *See* Wis. Stat. § 196.491(3)(d)2.

6. The proposed project is necessary to satisfy the significant probable future requirements of one customer, the Very Large Customer.

7. The proposed project design and location approved by this Final Decision are in the public interest considering alternative sources of supply, alternative locations, individual hardships, engineering, economic, safety, reliability, and environmental factors. *See* Wis. Stat. § 196.491(3)(d)3.

8. Construction and operation of the facility at the estimated cost will not impair the efficiency of the applicant's service, will not provide facilities unreasonably in excess of probable future requirements, and when placed in operation, will not add to the cost of service without proportionately increasing the value or available quality thereof. *See* Wis. Stat. §§ 196.49(3)(b), 196.491(3)(d)5.

9. The proposed project as approved by this Final Decision will not have undue adverse impacts on environmental values including ecological balance, public health and welfare, historic sites, geological formations, aesthetics of land and water, and recreational use. *See* Wis. Stat. § 196.491(3)(d)4.

10. The proposed project as approved by this Final Decision will not unreasonably interfere with the orderly land use and development plans for the area. *See* Wis. Stat. § 196.491(3)(d)6.

11. The proposed project as approved by this Final Decision will not have a material adverse impact on competition in the relevant wholesale electric service market. *See* Wis. Stat. § 196.491(3)(d)7.

12. The proposed project uses brownfields, as defined by Wis. Stat. § 238.13(1)(a), to the extent practicable. *See* Wis. Stat. § 196.491(3)(d)8.

13. As authorized, the project approved by this Final Decision will not affect waterways and wetlands and will not require permits from DNR for construction in waterways and wetlands. *See* Wis. Stat. ch. 30. However, the project will require permits from DNR for construction site erosion control and storm water handling. *See* Wis. Admin. Code ch. NR 216.

14. The proposed project approved by this Final Decision is subject to air permit requirements administered by DNR under Wis. Stat. ch. 285. DNR has responsibility for review of permit applications and issuance of air pollution control permits in accordance with the federal Clean Air Act (CAA) and Wisconsin statutes.

15. The proposed project approved by this Final Decision will require the applicant to obtain various permits from, provide notifications to, and coordinate with various federal, state, and local agencies.

16. Critical proposed facilities that could be damaged by flooding are not located in the 100-year flood plain. Consequently, there is no flood risk to the project per 1985 Executive Order 73.

17. Approval of the proposed project is in the public interest and is required by public convenience and necessity.

Conclusions of Law

1. The Commission has jurisdiction under Wis. Stat. §§ 1.11, 1.12, 44.40, 196.02, 196.025, 196.395, and 196.491, and Wis. Admin. Code chs. PSC 4 and 111, to issue a CPCN authorizing the applicant to construct and place in operation the proposed electric generation facilities described in this Final Decision and to impose the conditions specified in this Final Decision.

2. In issuing a CPCN for a public utility, the Commission has the authority under Wis. Stat. §§ 196.395 and 196.491(3)(e) to include conditions.

3. The proposed project complies with the Energy Priorities Law (EPL) as required under Wis. Stat. §§ 1.12 and 196.025(1).

4. This is a Type I action under Wis. Admin. Code § PSC 4.10(1) and required an EIS under Wis. Stat. § 1.11.

5. Commission and DNR staff prepared an EIS in compliance with Wis. Stat. § 1.11 and Wis. Admin. Code ch. PSC 4.

6. The proposed project, as conditioned by this Final Decision, satisfies the requirements of Wis. Stat. § 196.491(3)(d)3., will not have an undue adverse impact as defined in Wis. Stat. § 196.491(3)(d)4., and satisfies the other applicable CPCN criteria for approval.

7. Pursuant to Wis. Stat. § 15.02(4), the Commission has authority to delegate and redelegate to any officer or employee of the Commission any function vested in it by law.

Opinion

Applicable Statutory Criteria and Standard of Proof

The applicant is a public utility as defined in Wis. Stat. § 196.01(5)(a), engaged in rendering electric service in Wisconsin. The applicant is required to obtain a CPCN from the Commission pursuant to Wis. Stat. § 196.491 and Wis. Admin. Code chs. PSC 4 and 111, as the proposed project is a large electric generating facility as defined in Wis. Stat. § 196.491(1)(g) and has a capacity exceeding 100 MW.

The Commission is authorized to review and approve applications to construct large electric generating facility projects under the CPCN law. Wis. Stat. § 196.491(3). After reviewing the record compiled in the contested case proceeding, the Commission must determine whether the project serves the public convenience and necessity based on a number of factors relating to the need for and impacts of the project, employing the criteria outlined in the CPCN law and related statutes. Since 1907, the Commission has regulated public utilities to ensure that "reasonably adequate service and facilities" are available to the public at rates that are "reasonable and just." Wis. Stat. § 196.03(1). The Commission's expertise in administering Wis. Stat. § 196.491 to determine which proposed projects are appropriate and in the public interest has long been recognized by Wisconsin courts. *See Wisconsin Power & Light Co. v. Pub. Serv. Comm'n of Wisconsin*, 148 Wis. 2d 881, 888, 437 N.W.2d 888, 891 (Ct. App. 1989); *see also Clean Wisconsin, Inc. v. Public Service Commission of Wisconsin*, 2005 WI 93, 282 Wis. 2d 250, 700 N.W.2d 768 (recognizing the Commission's expertise in reviewing proposed construction projects under Wis. Stat. § 196.491).

The Commission's review of the application is governed and guided by a number of statutory provisions, each of which is addressed and analyzed below. The Commission may impose any conditions it finds to be reasonable and necessary for its decision.

Pursuant to Wis. Stat. § 196.491(3)(d)2., the Commission must decide whether the project, if constructed, would satisfy the reasonable needs of the public for an adequate supply of electric energy. The Commission must also determine whether the project is in the public interest, considering alternative sources of supply, alternative locations, individual hardships, engineering, economic, safety, reliability, and environmental factors pursuant to Wis. Stat. § 196.491(3)(d)3. The Commission must further determine whether the project complies with the EPL, Wis. Stat. §§ 1.12, and 196.025(1).

The statutory analysis also requires the Commission to consider whether the proposed project will have an undue adverse impact on other environmental values, as provided under Wis. Stat. § 196.491(3)(d)4., and the Commission must comply with the Wisconsin Environmental Policy Act (WEPA), pursuant to Wis. Stat. § 1.11 and Wis. Admin. Code ch. PSC 4.

The above statutory provisions work together with other laws and require the Commission to weigh whether the proposed project will substantially impair the efficiency of the applicant's service; provide facilities unreasonably in excess of probable future requirements; or add to the cost of service without proportionately increasing the value of service as specified by statute. *See* Wis. Stat. §§ 196.49(3)(b) and 196.491(3)(d)5.

The Commission must also find the record sufficient to support a conclusion that the project will not unreasonably interfere with the orderly land use and development plans for the area involved. Wis. Stat. § 196.491(3)(d)6. Additionally, the Commission must find that the

proposed project will not have a material adverse impact on competition in the relevant wholesale electric service market, under Wis. Stat. § 196.491(3)(d)7.

In light of the statutory requirements imposed by Wis. Stat. §§ 1.12(4), 196.025, and 196.491(3)(d), the Commission is tasked with deciding which site alternative to authorize for the project and must find that the project uses brownfields to the extent practicable. Wis. Stat. § 196.491(3)(d)8.

Determining whether a proposed project is in the public interest requires a high degree of discretion, judgment, and technical analysis. Such decisions involve intertwined legal, factual, value, and public policy determinations. The Commission, as the finder of fact, is charged with sifting through all of the information and applying the statutory criteria to reach a well-reasoned decision. In doing so, the Commission uses its experience, technical competence, and specialized knowledge to determine the credibility of each witness and the persuasiveness of the highly technical evidence presented on each issue.

With regard to evidentiary determinations, the applicable burden of proof functions in tandem with the applicable standard of proof. The CPCN law, Wis. Stat. § 196.491(3), unlike other provisions of Chapter 196, does not assign a burden of proof to any party with regard to any determination that the Commission must make.[2] Nor does the CPCN law itself specify a standard of proof (i.e., quantum of evidence) that must be found in order for the Commission to make one determination rather than another. This is contrasted with other sections of Wis. Stat. ch. 196, which require that certain determinations be made only upon "clear and convincing evidence" or "a preponderance of the evidence."[3]

[2] *See*, *e.g.,* Wis. Stat. §§ 196.499(5)(am), 196.504(8).
[3] *See*, *e.g.,* Wis. Stat. §§ 196.499(5)(d), 196.64(2), 196.795(7)(c).

The CPCN law provides that the Commission "shall approve an application . . . for a certificate of public convenience and necessity only if the commission determines . . ." that a proposed project will be free of specified adverse impacts and in the public interest, as noted above. These determinations are fact-intensive, and the Commission's action in approving or denying an application ultimately depends on the facts found by the Commission. As such, the standard of proof that the Commission must apply can be logically inferred from the standard of review set forth in Wis. Stat. § 227.57(6), which requires a court to remand a CPCN decision back to the Commission if its decision "depends on any finding of fact that is not supported by substantial evidence in the record."

As the courts have explained, "the substantial evidence test is not weighing the evidence to determine whether a burden of proof is met. Such tests are not applicable to administrative decisions." *Wisconsin Ass'n of Mfrs. & Commerce, Inc. v. Pub. Serv. Comm'n*, 94 Wis. 2d 314, 321, 287 N.W.2d 844, 847 (Ct. App. 1979). The substantial evidence test simply requires that there be enough evidence for a finding to be reasonable. *See Kitten v. DWD*, 2002 WI 54, 252 Wis. 561, 644 N.W.2d 649; *see also Gateway City Transfer Co. v. Pub. Serv. Comm'n*, 253 Wis. 2d 397, 405, 34 N.W.2d 238, 242, 1948 WL 60150 (1948). In other words, a court must determine whether the Commission used its technical competence and specialized knowledge to determine the persuasiveness of the evidence and reach a well-reasoned decision.

In light of this standard of proof, for each finding that the CPCN law requires the Commission to make, the Commission focuses on evaluating the evidence to identify the finding that is supported by substantial evidence. The standard of proof applicable to CPCN determinations renders the question of an applicable burden of proof a subordinate consideration.

A burden of proof consists of "the burden of going forward with the evidence of the alleged fact; and the burden of persuading the trier of fact that the alleged fact is true," known as the burden of persuasion.[4] The import of a burden of proof is generally effectuated through the burden of persuasion, rather than the burden of going forward. Therefore, although in administrative hearings such as this one the common-law rule that the moving party has the burden of proof is generally observed,[5] observation of this rule is fulfilled by evaluating the evidence to determine whether a finding is supported by substantial evidence.

Party and Public Participation

The Commission's proceeding on this CPCN application developed a robust record on all of the issues that the Commission must consider in reviewing a proposed project under Wisconsin law. Members of the public commented both in writing and through appearances at the public hearings about the impact that this project may have on them and their local communities. The Commission received 464 public comments through its website, many oral comments at the public hearings, and several written comments collected at the public hearings. The comments expressed concerns related to impacts on the environment, air quality and health impacts, and proximity to residences and other dwellings. The parties in the case offered thoughtful, extensive, and helpful testimony and other evidence, and argument. This information assisted the Commission in its review of the application, in further testing the technical evidence and adding alternative analysis, and in making its determination on the application.

[4] *Hochgurtel v. San Felippo*, 78 Wis. 2d 70, 86, 253 N.W.2d 526 (1977).
[5] *Sterlingworth Condominium Ass'n, Inc. v. Wis. Dept. of Natural Res.*, 205 Wis. 2d 710, 726, 556 N.W.2d 791 (Ct. App. 1996).

Project Description

The project is an approximately 128 MW RICE electric generation facility in the Town of Paris, Kenosha County, Wisconsin. The project will include the construction of seven individual RICE generators, with nameplate capacities of approximately 18.8 MW each, in such a manner that one, more, or all of the individual generators can be used in tandem to generate electricity. The facility will be fueled using natural gas, without a secondary fuel. New facilities for natural gas infrastructure will include an approximately 1,500-foot long, 12-inch diameter pipeline connecting an existing natural gas conditioning facility on the site to the authorized site of the project. The facility will be cooled with a closed-loop cooling water system that employs radiators with fans.

The applicant proposed three site alternatives for the facility. The applicant's preferred site (Proposed Site) is located at the property of the Lakeshore Capacity Improvement Project (LCIP) Regulator Station, approximately five miles east of the Paris Generating Station. That site is 14 acres in size with an additional 21.6 acres of laydown/trailer area. If selected, it would require a generator tie line to connect to the Paris Solar substation two miles away. That site is currently developed for agriculture and is located in the southeast portion of the property.

The applicant's first alternative site (Alternate Site 1) is located at the property of the Paris Solar Facility, south of the existing Paris Generating Station. That site is 13.6 acres in size with 18.5 acres of laydown/trailer area. If selected, it would require a generator tie route running from the west side of the facility northeast to the Paris Solar Substation. The site is located in the central portion of the property.

The applicant's second alternative site (Alternate Site 2) is located on the southwest corner of the property east of the existing Paris Generating Station. That site is 11 acres in size with 31 acres of laydown/trainer area. It is currently developed for agriculture.

The project will use the existing point of interconnection at the Paris Solar Collector Substation to connect to the transmission system. The project will include an approximately 3,600-foot 138 kV generator tie line, and no other transmission system upgrades, to reach the Paris Solar Collector Substation. The generator tie line will consist predominantly of a steel monopole single-circuit configuration. The applicant is seeking interconnection through the Midcontinent Independent System Operator, Inc. (MISO) Surplus Interconnection Process for the 2027- 2029 period and an additional interconnection request for new service beyond those years.[6] The MISO Surplus Interconnection Process allows a generating facility owner to install new generation under an existing underutilized generation interconnection, such that the total amount of interconnection service at the point of interconnection would remain the same. The applicant plans to submit an interconnection request for new service as part of MISO's Definitive Planning Phase (DPP) 2025 cycle and anticipates having a new interconnection service in place for the proposed RICE facilities in the 2028-2029 timeframe, at which point the applicant would terminate the Surplus Interconnection Service. Rebuttal-WEPCO-Hagerty-r-17:7-11 (PSC REF#: 533749).

Natural gas will be supplied by Wisconsin Electric Power Company-Gas Operations through the existing Lakeshore Lateral Pipeline (LLP), a natural gas distribution lateral connecting the existing Bluff Creek Gate Station to the LCIP Regulator Station. Ex.-WEPCO-Application-CPCN Application: 1-18 or 38 of 191 (PSC REF#: 517491). The applicant

[6] Using an existing point of interconnection can expedite the review process, as candidate generators do not have to proceed through the usual, longer MISO interconnection queue for new generation at a point of interconnection.

indicated that it did not expect any modifications to the LLP system would be required to facilitate the proposed project. Approximately 1,500 feet of 12-inch diameter natural gas pipeline will need to be installed from the existing gas conditioning equipment to provide firm gas supply to the reach the project site. The project will be fueled by natural gas without the capability to use a backup fuel.

The applicant estimated that the cost of the proposed project would be $279.6 million for the Proposed Site, with an additional AFUDC estimate of $23.7 million. Ex.-WEPCO-Application-CPCN Application: 4-1 or 94 of 191 (PSC REF#: 517490 confidential, PSC REF#: 517491 public). However, the applicant asserted that Alternative Site 2 would cost between $17.7-$23.2 million more than original estimates for the Proposed Site, due to several factors. Rebuttal-WEPCO-Mauer-5 (PSC REF#: 530088 confidential, PSC REF#: 530089 public). The cost factors included extension of warranty coverage on the engine and additional storage and handling fees; procurement and transporting equipment, reperforming site specific design work and geotechnical studies, and inflation; and owner's costs associated with land acquisition which has already been incurred, permit modifications, inflation and insurance costs. *Id.* In addition, the applicant asserted that a selection of Alternative Site 2 would delay the in-service date by one year and require the applicant to procure replacement energy and capacity from the MISO market, which the applicant asserted would cost an estimated $1.5 million for energy and $3.5-$7 million for capacity. *Id*. The estimated costs were developed in 2024 dollars and escalated based on a 2026 commercial-operation date, and do not include AFUDC. The cost estimate includes project direct costs, construction costs, and contractor fees including electric interconnection facilities and on-site natural gas pipeline facilities. Ex.-WEPCO-Application-

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CPCN Application: 4-1 and 4-2 or 94 and 95 of 191 (PSC REF#: 517490 confidential, PSC REF#: 517491 public).

Project Need and Alternatives

Prior to approving the proposed project, the Commission must make several interrelated, statutorily-required determinations that are informed by modeling and analysis provided in the record. The Commission's determination whether the project, if constructed, will satisfy the reasonable needs of the public for an adequate supply of electric energy (Wis. Stat. § 196.491(3)(d)2.); whether the project is in the public interest considering alternative sources of supply, alternative locations and other factors (Wis. Stat. § 196.491(3)(d)3.); and whether the project will substantially impair the efficiency of the applicant's service, provide facilities unreasonably in excess of probable future requirements, or add to the cost of service without proportionately increasing the value of service as specified by statute (Wis. Stat. §§ 196.49(3)(b) and 196.491(3)(d)5.) all fall under this category. Each requires consideration of why the applicant needs the proposed project, its likely future effects, and what other alternatives might address the need.

Applicant's Description of Project Need

In the application, the applicant stated that the purpose of the proposed project was primarily to serve a significant new load source in the Interstate 94 (I-94) corridor expected to start in 2025. *Id.* at 2-6 or 53 of 191. This new load would be in addition to a range of possible growth that the applicant expects in its extant system demand and load forecasts. The applicant provided significantly more detailed information about the I-94 corridor load increase in rebuttal testimony.

On rebuttal testimony, the applicant noted that, it had been widely and publicly reported that Microsoft was in the process of developing a very large data center in Mount Pleasant, Wisconsin, and had committed to investing approximately $3.3 billion in the facility. Rebuttal-WEPCO-Stasik-6r (PSC REF#: 534397 confidential, PSC REF#: 534398 public), Ex.-WEPCO-Stasik-4r (PSC REF#: 533739). Construction at the Microsoft site began in November of 2023 and was well underway at the time rebuttal testimony was filed. Rebuttal-WEPCO-Stasik-6 (PSC REF#: 534397 confidential, PSC REF#: 534398 public); Ex.-WEPCO-Stasik-6r (PSC REF#: 533750); Ex.-WEPCO-Stasik-7 (PSC REF#: 529998). Microsoft has announced that Phase 1 of the development will require 450 MW of electricity. Ex.-WEPCO-Stasik-13r (PSC REF#: 533753).

The applicant provided evidence of contractual obligations related to the costs of the proposed project. Ex.-WEPCO-Stasik-12 (PSC REF#: 530081 confidential, PSC REF#: 530082 public). The applicant asserted that this evidence demonstrated the need for the project, ensured that other customers would be protected from bearing the cost of the project if it was no longer needed, and indicated its commitment to protecting other customers from costs to serve one customer, termed the Very Large Customer. Rebuttal-WEPCO-Stasik-7-8, 12 (PSC REF#: 534397 confidential, PSC REF#: 534398 public). The applicant filed a Very Large Customer tariff with the Commission in docket 6630-TE-113 on March 31, 2025. Ex.-WEPCO-Stasik-25r (PSC REF#: 540566.)

The applicant stated that another need driver was the permanent retirement of Oak Creek Units 5 and 6, as well as the publicly announced expected retirement of Oak Creek Units 7 and 8

by the end of 2025, which the applicant stated would create a capacity need in the applicant's generation portfolio that will require alternate resources to fulfill.

The applicant stated that it had developed a comprehensive generation reshaping plan (GRP), and that the project was an integral part of the GRP. Ex.-WEPCO-Application-CPCN Application: 2-18 or 65 of 191 (PSC REF#: 517491). The applicant asserted that the purposes of its GRP were to maintain and enhance electric reliability, comply with recently implemented and anticipated future MISO resource adequacy construct and resource accreditation changes; meet substantial new load growth, ensure compliance with CAA rule modifications, and support the state of Wisconsin's carbon reduction goals. Ex.-WEPCO-Application-Volume III-Appendix D – Need and Alternatives Analysis: 1 (PSC REF#: 496389). The applicant asserted that the intermittent renewable generation resources being built in the system, such as wind and solar, introduced complexity in ensuring reliability, resiliency, and transmission grid stability. Ex.-WEPCO-Application-CPCN Application: 2-1 or 48 of 191 (PSC REF#: 517491). The applicant stated that the objectives of its GRP were maintaining reliability, ensuring resiliency, minimizing environmental impact, capturing economic value, and managing market risk. Ex.-WEPCO-Application-Volume III-Appendix D – Need and Alternatives Analysis: 4 (PSC REF#: 496389).

The applicant stated that the specific benefits of RICE as a part of its larger GRP, which incorporates a variety of different generating resources, were flexibility, scalability, fast ramp-up and ramp-down capability, and dispatchability. Ex.-WEPCO-Application-CPCN Application: 2-4 or 51 of 191 (PSC REF#: 517491). The applicant asserted that characteristics complement those of the applicant's evolving resource mix and described them as crucial to supplying grid

reliability as the electric fleet continues to evolve. *Id*. at 2-3 or 50 of 191. The applicant asserted that the proposed project would be dispatchable to meet both peak and baseload demand for its customers.

Applicant's Modeling Efforts

The applicant provided capacity expansion plan modeling in support of its application. The applicant used the PLEXOS software program, which seeks to optimize a portfolio of electric generation, storage, energy efficiency, and demand response resources to ensure that future firm capacity and energy needs can be met in a cost-effective manner. The applicant's modeling studied a 30-year time horizon and included information about expected load growth, new loads, environmental or MISO rules, inflation, natural gas prices, market energy and capacity costs, and other inputs. The program then developed a lowest-cost resource portfolio based on existing and potential new resources to ensure appropriate levels of energy and capacity for the applicant's modeled electrical load and demand needs.

The applicant developed four planning futures that each contained unique modeling assumptions model such as demand and energy growth, natural gas prices, general inflation rates, the potential cost of carbon dioxide emissions, and renewable tax credit levels. The applicant also modeled potential ways in which greenhouse gas regulations, as implemented by the Environmental Protection Agency (EPA), could be enforced in the future. A number of supply alternatives, including solar, battery energy storage systems (BESS), wind, energy efficiency, demand response, combined cycle facilities, combustion turbines with and without carbon sequestration, and RICE units were all available for the model to potentially select. In addition to native load growth assumptions, the applicant also included the anticipated new I-94 corridor load as part of its base model assumptions.

The applicant asserted there is a need for the proposed project, partially due to a new load expected in the applicant's system in 2026. The applicant also noted the impact of the implemented or expected retirement of approximately 1,085 MW of coal-fired electric generation at the Oak Creek Generating Facility, with the retirement expected to occur by December 2025. The applicant stated that its expected capacity positions, by season, over the next ten years demonstrate an ongoing need for additional resources to meet its planning reserve margin (PRM). The PLEXOS program included the applicant's seasonal capacity needs under the MISO resource adequacy construct and optimized a portfolio from the modeled resource list to ensure the applicant would have sufficient capacity in each season. The applicant stated that the proposed project featured some key resource characteristics that other resource types lacked, such as dispatchability and fast ramping to load, and asserted that the project would beneficially diversify the applicant's generation portfolio to avoid dependence on one resource type.

Some of the modeling runs performed by the applicant involved direct comparison of the proposed project against equivalent capacity amounts of different resource types. In these comparisons, the different resource types were "forced in" to the model, meaning the model was required to pick either the proposed project or the alternate resource type. Then, the overall costs of the two portfolios were compared, and a net present value (NPV) cost was developed for each compared alternative. If the overall portfolio NPV cost of the proposed project was lower, the proposed project demonstrated lower costs to customers; if the overall portfolio NPV cost of the alternate resource was lower, the proposed project demonstrated higher costs to customers. Direct comparison showed that the proposed project had a lower cost when compared to BESS, solar/BESS hybrid units, CTs, and combined cycle units with carbon sequestration in certain

sensitivities. Other runs involving BESS and combined cycle units without carbon sequestration showed the possibility of an NPV cost, though other considerations made those alternatives infeasible or not constructible within the time horizon required to meet the capacity needs of the applicant. By performing these comparative runs, the applicant could partially assess the value that the proposed project might add to its overall generation portfolio. This modeling demonstrated that the proposed project was a lower-cost alternative compared to many alternative technologies in most sensitivities, while other technology types would have required additional considerations that might outweigh their potential benefits.

Two MISO Resource Adequacy constructs were included in the modeling. Specifically, the seasonal construct and DLOL accreditation methodology were included, with DLOL being added to the modeling at a later stage at Commission staff's request. MISO's reliability-based demand curve (RBDC) was narratively discussed by the applicant in its application materials, but was not actively modeled. The seasonal construct was addressed by assigning firm capacities to each resource type, both existing and new, in the applicant's generator portfolio. Existing resources had accreditation assigned based on appropriate criteria, which could include historical generation performance and class type. New resources, including the generic and project specific alternatives from which the model could select, were assigned estimated capacity accreditations for each season. These values were multipliers to the installed capacity values of particular resource types and affected how the PLEXOS model selected the resources. The applicant's implementation of the seasonal construct in PLEXOS in this proceeding is consistent with its previous construction applications before the Commission.

Commission staff requested the applicant also to directly implement DLOL into both the firm capacities of the resources and the PRM values in the model in all seasons. Previously, a PRM based on installed capacity (ICAP) was used in this proceeding and in prior Commission submissions by the applicant. The modeling was updated to use DLOL-based firm capacities and PRM values that incorporated DLOL. This modeling update continued to demonstrate the need for the proposed project, as the model continued to select the proposed project as part of the optimal generation portfolio.

The applicant asserted that an anticipated large new load was a key driver for the proposed project, in conjunction with planned retirements of older generation units. It stated that the proposed project has characteristics such as dispatchability, fast ramping, and good seasonal accreditation, and would contribute to an overall diversification of the generation portfolio that other resources would not provide. The applicant stated that it has been in the process of changing its generation portfolio and that other recently approved projects have been focused on intermittent resources that do not necessarily have the strong seasonal attributes the proposed project would provide, citing solar resources during the winter season as one example. The applicant described the proposed project as capable of providing energy when called upon and running for an extended period of time at full output, if needed.

Intervenors' Review of the Applicant's Modeling Efforts

Several intervenors raised concerns about the applicant's modeling. Some of these issues were explored in subsequent data requests from Commission staff. Clean Wisconsin witness Chelsea Hotaling used different modeling assumptions in an updated PLEXOS modeling of the applicant's portfolio, including adding more energy efficiency and demand response options,

moving back the availability dates of combustion turbines and combined cycle units, reducing BESS capital costs to change how tax credits may be implemented, allowing RICE units to be selected in smaller sizes, and removing the I-94 corridor load. Direct-CW-Hotaling-r-16 (PSC REF#: 533619). Clean Wisconsin witness Douglas Jester expressed concerns that the new load cited by the applicant may be overstated or may not happen at all, and that BESS capital costs were overstated and BESS arbitrage values were not properly placed in the model. Direct-CW-Jester-r-11-12 (PSC REF#: 533629). Clean Wisconsin witness Stacy Sherwood supported the modeling by witness Hotaling and provided additional analysis of demand response opportunities in Wisconsin. Direct-CW-Sherwood (PSC REF#: 527094). Clean Wisconsin witness Michael Goggin asserted that wind resources were unreasonably restricted in the model, and that out of state wind resources should have received more consideration. Direct-CW-Goggin-4-5 (PSC REF#: 527095).

CUB witness Edward Burgess raised concerns about some of the same modeling issues raised by Clean Wisconsin, namely that the applicant's input assumptions may have skewed the modeling results to select the proposed project. Direct-CUB-Burgess-7 (PSC REF#: 527429). Witness Burgess also believed that unforced capacity (UCAP) PRM and DLOL should have been implemented in the modeling by the applicant; that BESS costs were overstated in the model; that more demand response and energy efficiency should have been modeled; and that the applicant may have overstated the new load.

In summary, a number of intervenors contested a variety of assumed inputs and implementation methodologies used by the applicant to produce modeling results in support of the proposed project.

Commission Staff's Review of the Applicant's Modeling Efforts

Commission staff performed a comprehensive review of the applicant's modeling, including a thorough review of the input assumptions and original run results. Based on this review, Commission staff asked a number of data request questions covering a variety of topics, including: updating the portfolio modeling to include continuation or upgrade costs of other facilities associated with the applicant, such as Point Beach and Elm Road; inclusion of costs of ancillary facilities that may provide support to the proposed project; modeling sensitivities looking at possible pricing changes; modeling sensitivities where the load forecast for the new load is lowered or removed; modeling sensitivities directly comparing the proposed project to equivalent amounts of different resource types to review NPV differences; modeling sensitivities reviewing different MISO PRM variants (ICAP, UCAP, UCAP with DLOL); modeling sensitivities with interconnection constraints; and modeling sensitivities where additional generic resource types are added, among others.

The applicant worked with Commission staff and supplied modeling responsive to all of the requested runs, including those runs potentially showing that a different resource type could replace some or all of the proposed project in an optimized portfolio. Generally, the runs were of two types: comparison runs where the proposed project and a chosen alternative were "forced in" so an NPV comparison could be made, and runs where the model was able to select freely from the available resources. Both types of runs added useful information to the record. The comparison runs allowed Commission staff to evaluate the potential benefit the proposed project would have over alternate resource types using the same amount of firm capacity, and to identify candidate technologies that were competitive with the proposed project. The unconstrained runs

allowed Commission staff to determine whether the proposed project was selected by the model when it was not forced in as part of the resource portfolio. In the aggregate, the modeling helped to clarify the role the proposed project would play in the applicant's resource portfolio.

Commission staff reviewed the applicant's stated capacity position and compared the reserve margins both with and without the optimized portfolio. As the PLEXOS model solves against having sufficient capacity reserves in each season for each year reviewed, Commission staff understood that the applicant's capacity position would be sufficient using the optimized portfolio, which includes the proposed project. To the extent that multiple planning reserve margin types were also investigated (ICAP, UCAP, UCAP with DLOL modifications) and the proposed project was still part of the optimized portfolio, Commission staff concluded that the proposed project was a necessary part of that applicant's portfolio, particularly since the modeling yielded the same results using multiple methodologies.

In several of the modeling runs provided by the applicant and reviewed by Commission staff, the proposed project was found to be sensitive to assumptions on differing levels of greenhouse gas (GHG) restrictions. Although high restrictions on emissions would typically penalize fossil fuel generation facilities like the proposed project, setting limitations on the operation of new and existing thermal resources in the model resulted in a capacity need for the applicant that the model would fill with natural gas generation. In several of the modeling sensitivities where RICE technology was not included in the optimal expansion plan, the model instead selected a combined cycle unit without carbon sequestration. However, over the hundreds of modeling runs provided by the applicant and reviewed by Commission staff, the proposed project was otherwise selected as a part of the optimized portfolio in unconstrained runs

as the least-cost option when compared to equivalent capacity amounts of alternate resources. Ex.-PSC-DRR: Responses PSCW-KG-8.2, 8.4, 8.5 (PSC REF#: 533106). Other considerations precluded combined cycle units without carbon sequestration from being reasonable alternatives to the proposed project, as there was low probability that sufficient units could be constructed in time to serve the new load given the timing of the application. These exceptions notwithstanding, the evidence in the record supports the conclusion that the proposed project is a part of the applicant's optimal, lowest-cost generation portfolio.

The applicant did include both energy efficiency and demand response on the supply side of the model, as options which the PLEXOS program could pick in addition to the proposed project. The applicant noted that it had complied with its legally required energy efficiency obligations, and that demand response programs can take time to develop and can have uncertain levels participation. The applicant also asserted that, due to the size of the proposed project, no reasonable amount of energy efficiency or demand response could fill the need for the project. Further, the applicant stated that energy efficiency and demand response could match the project's dispatchability and ramping rate. It is reasonable to conclude that energy efficiency and demand response cannot be a replacement for the proposed project, despite its inclusion in the modeling.

The applicant stated that its alternative resource costs were based on actual or expected costs for projects that would be submitted to the Commission for consideration. Commission staff reviewed the costs of the proposed project and found that, when compared with information from the Energy Information Administration, the modeled costs appeared reasonable. Direct-PSC-Golden-17 (PSC REF#: 527133).

CUB strongly disagreed with the applicant's estimated costs of alternatives, particularly for BESS. CUB witness Burgess argued that the costs for BESS resources in the model should be reflective of national average costs information provided by the Energy Information Administration (EIA). Direct-CUB-Burgess-41-44 (PSC REF#: 527428 confidential, PSC REF#: 527429 public). Applicant witness Brandon Gerlikowski argued that the EIA data was stale as it was based on information from 2019 and pointed out that it was not specific to Wisconsin. Rebuttal-WEPCO-Gerlikowski-43 (PSC REF#: 530087). Witness Gerlikowski stated that the applicant's alternative resource cost assumptions were based on actual or expected costs for projects approved by or pending before the Commission. *Id.* 20-21, 43. Witness Burgess countered that the cost comparisons from similar projects were not valid because they were based on a project with significant *force majeure* cost overruns. Surrebuttal-CUB-Burgess-r-15-18 (PSC REF#: 533669 confidential, PSC REF#: 533670 public). Commission staff compared the applicant's estimated costs for alternate resources to costs for similar projects in approved or pending dockets before the Commission and found that they were consistent. Surrebuttal-Golden-2 (PSC REF#: 532297).

National average costs are indicative of what the alternative technologies may cost aggregated across multiple parts of the country, but are not as compelling as the actual prices being realized for Wisconsin generation projects. However, the specifics of such projects used for comparison are worthy of consideration. When costs were left at the levels modeled by the applicants, Commission staff noted that the proposed project continued to show NPV savings in the model when compared to alternatives, even after the project price was increased by 25 percent.

Commission staff also reviewed the fixed and variable costs of the project and found them to be comparable with costs in prior comparable, dockets. Commission staff also requested that the costs associated with natural gas supply projects ancillary to the proposed project be incorporated into the modeling. The applicant provided this review in both a fixed and variable cost manner. The proposed project was selected in all of the runs in which these costs were added, suggesting that the proposed project costs were implemented reasonably.

CUB witness Burgess and Clean Wisconsin witness Hotaling also argued that the cost assumptions for the modeled alternatives for energy efficiency and demand response would allow for more of those resources to be included in the modeling. Direct-Burgess-28-31 (PSC REF#: 527428 confidential, PSC REF#: 527429 public), Direct-CW-Hotaling-21 (PSC REF#: 533619). The applicant provided modeling that allowed energy efficiency and demand response to be included as selectable capacity resources using cost assumptions similar to those used in projects that have been approved or pending dockets before the Commission. Rebuttal-WEPCO-Gerlikowski-42-44 (PSC REF#: 530087).

For the years 2017 through 2023, Commission staff compared the applicant's historic load to the load forecast, with historical load data as filed in the annual reports and the load forecast as part of the PLEXOS model input assumptions. The applicant's baseline load forecast information across the four developed planning futures was consistent with historical loads reported in the annual reports. In addition, the new I-94 corridor load was added on top of the baseline load forecast. Commission staff review of the new I-94 corridor load was also consistent with Commission staff's past understanding of the size and timing of the new load. With the I-94 corridor load added to the forecast, the forecasted electrical demand and load were

understandably higher than historical values. Even in the absence of the I-94 corridor load, each planning future assumed a modest load growth that Commission staff found reasonable.

The Commission finds that the proposed project, as approved by this Final Decision, will be a part of the least-cost, optimized portfolio that the applicant will need to serve existing and new loads while it simultaneously retires older generation resources. The proposed project offers several features that complement the applicant's evolving, diverse resource mix due, including dispatchability, fast ramping capability, and an ability to run for extended periods of time. Increasingly, the applicant and other entities in Wisconsin are installing intermittent renewable resources that cannot always produce electricity when needed. The proposed project helps to ensure the applicant's capacity to reliably serve load at all times, thus enhancing reliability for the applicant's customers.

With the anticipated retirement of older thermal generation units and an expected new I-94 corridor load, the applicant will need a portfolio of resources to both offset the retiring capacity and serve the new load, while maintaining reliability for all customers. The proposed project was part of the optimally chosen resource portfolio in almost all of the unconstrained runs reviewed by Commission staff in which the model was free to choose among all resources. In direct comparisons with equivalent amounts of other resources, the NPV benefits of the proposed project were comparable to many alternative resources, including solar/BESS hybrids, combined cycle units with carbon sequestration, BESS, and CT units. In direct comparisons where other resources had a lower NPV cost than the proposed project, other factors, such as insufficient time to implement an adequate amount of generation, made those alternate resources infeasible to consider as replacements.

While demand response is not a viable alternative to the proposed project, analysis in the record suggests that it is likely a source capable of significant, cost-effective capacity for the applicant to fill, in part, the future need it indicates will remain in addition to the proposed project. The Commission addresses this issue separately, in its Final Decision in docket 6630-CE-317, by adopting an order condition that requires the applicant to submit an analysis of a robust and comprehensive future demand response program in its next rate case. It is not necessary to duplicate that requirement in this docket.

Energy Priorities Law and Generation System Alternatives

When reviewing a CPCN application, the Commission also considers Wis. Stat. §§ 1.12 and 196.025(1), the EPL, which establishes the preferred means of meeting Wisconsin's energy demands. Wisconsin Stat. § 1.12(4) creates the following priorities:

> In meeting energy demands, the policy of the state is that, to the extent cost effective and technically feasible, options be considered based on the following priorities, in the order listed:
> (a) Energy conservation and efficiency.
> (b) Noncombustible renewable energy resources.
> (c) Combustible renewable energy resources.
> (cm) Advanced nuclear energy using a reactor design or amended reactor design approved after December 31, 2010, by the U.S. Nuclear Regulatory Commission.
> (d) Nonrenewable combustible energy resources, in the order listed:
> 1. Natural gas.
> 2. Oil or coal with a sulphur content of less than 1 percent.
> 3. All other carbon based fuels.

In addition, Wis. Stat. § 196.025(1) requires that the Commission shall implement these priorities in making all energy-related decisions, to the extent the listed priorities are cost-effective, technically feasible, and environmentally sound.

The EPL encompassed in Wis. Stat. § 1.12(4) is not a strict mandate the Commission must mechanically apply. *Clean Wisconsin, Inc. v. Pub. Serv. Comm'n of Wisconsin*, 2005 WI

93, ¶ 104, 282 Wis. 2d 250, 336, 700 N.W.2d 768, 810. Instead, the policy expressed in the EPL is implemented by the Commission's overall pattern of decisions. *Id*., ¶ 109. When evaluating a CPCN application, the Commission must harmonize the EPL with the CPCN statute, Wis. Stat. § 196.491. *Id*., ¶¶ 104, 121.

The proposed project will primarily be a natural gas-fired electric generation facility. Energy conservation and efficiency, noncombustible renewable energy resources, combustible renewable energy resources, and advanced nuclear energy resources are higher priorities than the proposed project. In enacting the EPL, however, the Legislature made a point of recognizing that the bill did not create any standards for determining the extent to which the priority list is actually used in making such determinations, nor did the lawmakers establish that an item that is not on the top of the list cannot be built. Instead, the legislators made clear that agencies should look to how a project could fit into the entire energy mix. "[C]ompliance with the directive that agencies follow the priority list will be reflected in the overall pattern of decisions made by each agency … the success of implementing the priority list will be reflected in the overall pattern of energy generation and use, across the state and through time." Prefatory Note to 1993 Assembly Bill 701.

The applicant asserted that the proposed project would be an important piece of its optimal generation portfolio, providing necessary characteristics such as dispatchability, fast ramping, and resource diversification to complement other intermittent, non-dispatchable renewable generation that would be added to the same portfolio. Ex.-WEPCO-Application-CPCN Application: Section 2.1.1 (PSC REF#: 517490 confidential, PSC REF#: 517491 public).

The applicant asserted that no higher priority options in the EPL could provide reliable and dispatchable generation and were also cost-effective and technically feasible.

CUB witness Burgess, along with Clean Wisconsin witnesses Hotaling and Sherwood, expressed concerns that insufficient energy efficiency or demand response was represented in the modeling. Direct-CUB-Burgess-41-44 (PSC REF#: 527428 confidential, PSC REF#: 527429), Direct-CW-Hotaling-r-21 (PSC REF#: 533619), and Direct-CW-Sherwood-12 (PSC REF#: 527094). These witnesses argued that cost assumptions included in the modeling for these resources were inappropriately valued and could be a cost-effective alternative to the proposed project. These witnesses, as well as WLGCC witness Allison Carlson, also proposed updating how energy efficiency and demand response were modeled, to better align their inclusion more with the modeling of other programs. Surrebuttal-WLGCC-Carlson-3 (PSC REF#: 533502).

The Commission finds the evidence presented by the applicant and reviewed by Commission staff demonstrated that neither energy efficiency and conservation nor noncombustible renewable resources were cost-effective or technically feasible alternatives to address the needs for the proposed project. The applicant's energy and demand forecast already has accounted for existing energy efficiency and demand response programs, which are represented as a reduction to the native load of the utility. With the expected inclusion of a significant new load in the applicant's service territory, the amount of energy efficiency and demand response required to offset the new load would be infeasible. The applicant argued it had met its obligations with respect to energy efficiency through its participation in Focus on Energy and statutorily it cannot be required to do more. The applicant asserted that demand side

programs would likely require an enhanced incentive for more customer participation given the risk to service interruptions that demand response can make.

Despite these statements, the applicant did provide high-level, supply-side estimates for additional energy efficiency and demand response programs that the PLEXOS model could select. Even with these programs available, the model still chose the full proposed project in almost all of the unconstrained runs reviewed, meaning that energy efficiency and demand response are complementary to, rather than a replacement for, the proposed project. These results support the conclusion that energy efficiency and demand response are not a replacement for the proposed project.

Non-combustible renewable resources were also evaluated in the model. Solar and solar/BESS hybrid units of equivalent firm capacity were found to have higher NPV costs than the proposed project. Wind units, while cost competitive, were not available in sufficient quantity within the state of Wisconsin to meet the expected need timeline for the applicant. Moreover, both resource types were picked in addition to, rather than in replacement of, the proposed project, thereby indicating that neither are cost effective or technically feasible replacements for the proposed project. Combustible renewable resources and advanced nuclear resources are generally not widely used in the state of Wisconsin or are otherwise unavailable, meaning they were not considered technically feasible and therefore ignored. Ultimately, the applicant determined that none of these alternatives could meet the capacity need in a more cost-effective manner than the proposed project.

The Commission concludes that the applicant's proposed project, as approved in this Final Decision, complies with the EPL. While other, higher ranking EPL priority items were

chosen by the model in unconstrained runs, the proposed project was also still chosen. Further, selection of one of the alternatives would cause a delay in the applicant's construction timeline such those alternatives would not be able to timely meet the project need. The Commission considers the proposed project to have met the requirement. The Commission concludes that energy efficiency, conservation, or any of the other resources listed higher than natural gas resources in the EPL are not cost-effective or technically feasible options that would meet the applicant's reliability and resiliency needs.

Need and Modeling Conclusions

The applicant anticipates demand in its service territory to increase significantly in the near term due to one large data center being built in Mount Pleasant which will require large amounts of firm electricity to serve. After intervenors argued that the new load was speculative, the applicant provided substantial evidence that the load would materialize and of customer protections in place in case the new load does not materialize. Ex.-WEPCO-Stasik-12 (PSC REF#: 530081 confidential, PSC REF#: 530082 public). Wisconsin Stat. § 196.03(1) requires that the applicant serve all of its customers' energy needs. This is a mandatory duty and can only be excused for reasons outside the utility's control. *Waukesha Gas & Elec. Co. v. Waukesha Motor Co.*, 190 Wis. 462, 209 N.W. 590 (1926); *N. States Power Co. v. Pub. Serv. Comm'n*, 246 Wis. 215, 228, 16 N.W.2d 790 (1944) ("[T]he legislature has determined that the public interest requires that public utilities shall, within their undertaking, furnish their service to all who reasonably require the same."); *see also* Wis. Stat. § 196.37(2) (empowering the Commission to order public utilities to provide reasonably adequate service). The applicant intends to provide service to the data center under the Very Large Customer tariff under review in docket

6630-TE-113. Rebuttal-WEPCO-Stasik-r-8-9 (PSC REF#: 534397 confidential, PSC REF#: 534398 public); Ex.-WEPCO-Stasik-25r (PSC REF#: 540566.)

Overall, the modeling routinely selected the proposed project as part of an optimized, least-cost resource portfolio over a variety of possible future conditions, EPA regulatory sensitivities, and implementation of MISO rules. The applicant performed a reasonable set of analyses that demonstrated the proposed project satisfies the applicant's reliability, energy, and capacity needs in the most cost-effective manner. Modeling performed by the applicant, intervenors and Commission staff all confirmed that the proposed project was selected across a wide range of modeling sensitivities when taken in conjunction with other modeling considerations such as DLOL and seasonal accreditation. Moreover, the Commission finds the applicant's information provided in the evidentiary record persuasive that the new load will be realized in a sufficient manner to warrant authorization of the proposed project. Since the applicant is reasonably sure of and provided evidence of having a portion of this new load come to fruition, the proposed project would not constitute facilities unreasonably in excess of future requirements and satisfy the reasonable needs of the public for an adequate supply of electric energy. To ensure and monitor the accuracy of the applicant's load forecast and as will be discussed later in this Final Decision, the Commission adopts an order condition that requires the applicant to notify the Commission in the event that the Very Large Customer's load forecast significantly decreases and to take all appropriate customer protection measures detailed in the applicant's testimony and exhibits, or any approved tariff.

The Commission finds that the project will satisfy the reasonable needs of the public for an adequate supply of electric energy, as required by Wis. Stat. § 196.491(3)(d)2., and will not

provide facilities unreasonably in excess of probable future requirements under Wis. Stat. § 196.49(3)(b)2. Additionally, the Commission finds that the proposed project, as approved by this Final Decision, is in the public interest considering alternative sources of supply. Wis. Stat. § 196.491(3)(d)3. The applicant performed a reasonable set of analyses that demonstrated the proposed project satisfies the applicant's reliability, energy, and capacity needs in the most effective manner.

Similarly, the Commission further finds that the applicant's analyses demonstrate that the proposed project will not impair the efficiency of the applicant's service, and when placed in operation, will not add to the cost of service without proportionately increasing the value or available quantity thereof. Indeed, the proposed project was a part of the least cost, optimized portfolio in almost all of the runs prepared by the applicant and reviewed by Commission staff. Additionally, the proposed project will not provide facilities unreasonably in excess of probable future requirements, as described earlier. Thus, the proposed project fulfills the requirements of Wis. Stat. §§ 196.49(3)(b) and 196.491(3)(d)5.

The record demonstrates that the primary need for the project is to provide flexible and reliable generating capacity to the electric grid to meet the applicant's need for additional capacity. The modeling files submitted by the applicant and intervenors and reviewed by Commission staff demonstrated that, under a variety of future scenarios, the proposed project was the least-cost alternative. The model selected the project as part of the GRP in the majority of runs during robust analysis of possible futures.

The applicant asserted that the proposed project is part of a least-cost portfolio that will support continued, reliable service to existing customers, as well as serve a large new load in the

I-94 corridor. A review of the applicant's modeling demonstrates that the proposed project is routinely selected as part of the applicant's lowest-cost generation portfolio across a number of different future assumptions about load growth, fuel costs, rollout of new MISO Resource Adequacy constructs, implementation of greenhouse gas regulations, and alternative technologies. Ex.-PSC-DRR: Responses PSCW-KG-8.2, 8.4, 8.5 (PSC REF#: 533106).

Intervenors to this proceeding claimed that other generation or storage technology resources could be more cost-effective than the proposed project, and result in lower environmental or health impacts. Intervenors also expressed concerns that the full I-94 corridor load may not come to fruition. However, the modeling provided by the applicant and reviewed by Commission staff demonstrated that the proposed project continued to be a part of the applicant's least-cost generation portfolio even after incorporation of some of the elements of the modeling changes requested by intervenors and implementation in the model of more up-to-date MISO Resource Adequacy constructs, such as the direct loss of load (DLOL) construct.

Material Adverse Impacts to Wholesale Competition

Under Wis. Stat. § 196.491(3)(d)7., the Commission may only issue a CPCN for a project that "will not have a material adverse impact on competition in the relevant wholesale electric service market." The applicant asserted that a Herfindahl-Hirschman Index analysis demonstrated that the proposed project would not have a material adverse impact, nor that the local wholesale market prices would be significantly impacted. Direct-WEPCO-Zahniser-Word-3, 6, 9-14 (PSC REF#: 533731). No parties nor Commission staff offered evidence that the proposed project would have a material adverse impact on the wholesale electric market. The Commission finds that the project meets the requirements of Wis. Stat. § 196.491(3)(d)7.

Wisconsin Environmental Policy Act Compliance and Environmental Review

WEPA requires all state agencies to consider the environmental impacts of "major actions" that could significantly affect the quality of the human environment. Wis. Stat. § 1.11. If a project is likely to have significant impact on the human environment as defined by Wis. Stat. § 1.11, this requirement must be satisfied through the preparation and issuance of an EIS. The Commission must determine whether it has complied with this requirement.

In addition, under the CPCN statute, the Commission must find that the proposed project, with the conditions imposed by this Final Decision, is in the public interest considering environmental factors (Wis. Stat. § 196.491(3)(d)3.), and that the proposed project will not have an undue adverse impact on environmental values such as, but not limited to, ecological balance, public health and welfare, historic sites, geological formations, the aesthetics of land and water, and recreational use (Wis. Stat. § 196.491(3)(d)4.).

Compliance with WEPA

The proposed project is a Type I action under Wis. Admin. Code § PSC 4.10(1), Table 1. Type I actions are major actions involving requests for Commission approval that significantly affect the quality of the human environment within the meaning of Wis. Stat. § 1.11(2)(c). Such actions require the preparation of an environmental impact statement (EIS). Commission staff worked jointly with Wisconsin Department of Natural Resources (DNR) staff in preparing an EIS to analyze the potential environmental impacts of the project pursuant to Wis. Stat. § 1.11 and Wis. Admin. Code §§ PSC 4.30 and NR 150.20.

Pursuant to Wis. Admin. Code § PSC 4.30(2), a notification of the Commission's intent to prepare an EIS, including a solicitation for comments on the environmental aspects of this project, was sent to the docket mailing list on July 16, 2024. The Commission received public comments on the proposed project during the EIS scoping period. The Commission issued the Draft on October 31, 2024, and issued a notice of the availability of the Draft EIS on November 1, 2024.

Commission and DNR staff evaluated and described the anticipated impacts of the proposed project in the EIS for the project. (PSC REF#: 527759.) The EIS considered a broad range of ecological and socioeconomic impacts that could occur as a result of the construction and operation of the project, such as impacts to local natural resource areas, landowner rights, aesthetics, archaeological and historic resources, cultural resources, electric and magnetic fields, property values, radio and television reception, recreation and tourism, safety, communication facilities, endangered resources, forested lands, grasslands, invasive species, waterways, wetlands, and wildlife. Anticipated impacts, potential mitigation actions, and the status of permits, many of which are discussed below, were further described in Commission and DNR

staff testimony. (PSC REF#: 533398, PSC REF#: 533399, PSC REF#: 533544.) In addition to soliciting public comments on the EIS scope, Commission staff held public scoping meetings on the project in February 2025.

The EIS concluded that construction and operation of the proposed project would likely have a range of environmental effects, discussed in more detail below. This evaluation assumed that some, if not all, of the mitigation measures proposed by the applicant and Commission or DNR staff are used.

The Commission finds that it has fulfilled its requirements under WEPA through the preparation and issuance of the final EIS and the creation of the record of the technical and public hearings held in the project area. Its review of the project is sufficient in both of these respects. In preparing the EIS, Commission staff reviewed the information from the applicant's' CPCN application, responses to Commission staff data requests, comments received during scoping for development of the EIS, maps, Geographic Information System (GIS) data, and reports from consultants. Commission staff also coordinated its review with DNR staff to assess wetland, waterway, water use, water withdrawal, air emission, and endangered resource impacts. This review complied with WEPA pursuant to Wis. Stat. § 1.11 and Wis. Admin. Code ch. PSC 4.

Site Alternatives and Authorized Site

The CPCN statute requires the Commission to consider alternative locations when determining whether a proposed generating plant is in the public interest. Wis. Stat. § 196.491(3)(d)3.

Wisconsin Admin. Code § PSC 111.53(1)(e) and (f) require a CPCN application to describe the alternatives considered, describe the siting process, identify the factors considered in

choosing and ranking the alternatives, and detail site-specific information for each site. The purpose of requiring this information is to equip the Commission to: (1) understand the overall context of site alternatives; (2) understand and potentially judge an applicant's decision to move forward with a site, given the other alternatives considered; (3) understand in great detail the characteristics of the two sites proposed to the Commission; and (4) determine whether one, both, or neither of the two sites is in the public interest, taking into consideration the Commission's judgment of the factors the applicant used in ranking the alternatives and the rank it assigned.

For purposes of the Commission's review, the applicant proposed three site alternatives for the facility. The applicant's preferred site (Proposed Site) is located at the property of the Lakeshore Capacity Improvement Project (LCIP) Regulator Station, approximately five miles east of the Paris Generating Station. That site is 14 acres in size with an additional 21.6 acres of laydown/trailer area. It would have required a generator tie line to connect to the Paris Solar substation two miles away. That site is currently developed for agriculture and is located in the southeast portion of the property.

The applicant's first alternative site (Alternate Site 1) is located at the property of the Paris Solar Facility, south of the existing Paris Generating Station. That site is 13.6 acres in size with 18.5 acres of laydown/trailer area. It would have required a generator tie route running from the west side of the facility northeast to the Paris Solar Substation. The site is located in the central portion of the property.

The applicant's second alternative site (Alternate Site 2) was located on the southwest corner of the property east of the existing Paris Generating Station. That site is 11 acres in size with 31 acres of laydown/trainer area. It is currently developed for agriculture.

The application explained the siting process that led to the selection of the proposed project site. Ex.-WEPCO-Application-CPCN Application: Section 1.4 (PSC REF#: 517491). At the time of the applicant's selection, only the Proposed Site was owned by the applicant. In addition, the application stated that the applicant preferred the Proposed Site because it already housed an existing natural gas regulator station owned by Wisconsin Electric Gas Operations; the Proposed Site had standard mitigation for sound limit adherence; and the Proposed Site was near the Paris Solar collector substation, which would allow the applicant to utilize MISO's Surplus Interconnection Agreement process.

Both of the alternative sites are located approximately 1.5 miles west of the Proposed Site, further away from concentrations of residences. Rebuttal-WEPCO-Maurer-5 (PSC REF#: 530088 confidential, PSC REF#: 530089 public). Both alternative sites are also on land owned by the applicant and are located near or adjacent to the interconnection substation. Alternative Site 1 currently hosts solar panels associated with the Paris Solar project, which would need to be relocated to host the proposed RICE project. Alternative Site 2 is located on active agricultural land, shares similar impacts with the Proposed Site. Local residents as well as the Town of Paris expressed concerns relating to the disturbance and nuisance that the plant would create—particularly if located at the Proposed Site—including drainage issues, property devaluation, noise impacts, and visual impacts. Public comments and the Town of Paris expressed a preference for the alternative sites in the event of a project approval.

The Town of Paris urged the Commission to select Alternative Site 2 if approving the project, because it was adjacent to the existing Paris Generating Station, with only 14 residential properties nearby, and because drainage generally flows to applicant-owned properties rather than other adjacent properties. Direct-TOP-Holloway-15-16 (PSC REF#: 527318), Ex-TOP-Holloway-8 (PSC REF#: 527068), Ex.-TOP-Holloway-9 (PSC REF#: 527069). The Town of Paris also asserted that impacts of noise, dust, construction traffic and visual disruption will affect far fewer property owners at Alternative Site 2. Direct-TOP-Holloway-15 (PSC REF#: 527318).

Locating the RICE Project at Alternative Site 2 will require WEPCO to obtain a major source PSD permit. Rebuttal-WEPCO-Maurer-4 (PSC REF#: 530088 confidential, PSC REF#: 530089 public). The applicant asserted that the alternative sites would cause mobilization delays and result in increased project costs associated with the otherwise-viable alternative sites. The Town of Paris suggested that obtaining a new permit could also impose additional controls on the RICE Project, and therefore lower net emissions. Surrebuttal-TOP-Holloway-5 (PSC REF#: 532251).

The Commission finds the Town of Paris's arguments on this point more persuasive. Alternative Site 2 is the optimal alternative in that it is adjacent to an existing electric generation facility and will have the least amount of environmental and aesthetic impact to the smallest number of nearby landowners and the Town of Paris. It will also avoid the need for a 1.5 miles of transmission line. While there could be delays associated with this site selection, these delays would be directly related to the applicant's own decision not to submit air permitting applications to the DNR in advance of submitting its CPCN application to the Commission.

The applicant also asserted that selecting Alternative Site 2 would increase costs because the applicant will need to purchase capacity from MISO during the year delay while it pursues the air permits it needs. However, the increased MISO costs the applicant provided on the record did not net out the savings attributable to not running the plant during that same period.

Individual Hardships

The CPCN statute requires that the Commission determine whether the project is in the public interest considering individual hardships. Wis. Stat. § 196.491(3)(d)3.

During the project review and public hearings, several members of the public provided comments that primarily expressed opposition to the Proposed Site, due to new impacts associated with a power plant and the site's proximity to residences and other dwellings. None of these comments identified individual hardships which would result from the construction or operation of the proposed project.

Given the site selection of Alternative Site 2, the proposed project units will be constructed adjacent to an existing electric generation facility, and no significant impacts to local residences or businesses are anticipated from construction or operation of the project facilities. Further, as discussed below, the Commission is imposing mitigation measures through conditions imposed in this Final Decision, which will diminish the impacts of concerns identified in the record. The Commission finds, pursuant to Wis. Stat. § 196.491(3)(d)3., that individual hardship considerations do not preclude a finding that the project is in the public interest.

Consideration of Environmental Impacts

The CPCN statute requires the Commission to determine that the project will not have an undue adverse impact on environmental values such as, but not limited to ecological balance,

public health and welfare, historic sites, geological formations, the aesthetics of land and water, and recreational use. Wis. Stat. § 196.491(3)(d)4.

As discussed in the EIS, the main environmental impacts anticipated during construction of this project are those associated with land disturbance, localized traffic impacts, noise, and light. Operation of the project facilities is expected to result in air emission impacts; noise, light, and aesthetic impacts; and production of waste products, such as oil-contaminated wastewater. Some of these areas of environmental impacts are regulated by DNR permits. DNR staff responsible for these permits provided information for the final EIS and submitted testimony in this proceeding pursuant to Wis. Stat. § 30.025(2g)(b).

A review of historic resources found no burial sites, archaeological sites, or other sensitive cultural resources in the area anticipated to be impacted by construction of the approved site. Based on the information from the historic resource review and the applicant's statement regarding the process it will implement if any unanticipated resources are discovered, the Commission finds that construction of the proposed facilities is not expected to affect any historic properties under Wis. Stat. § 44.40.

Impacts to wildlife are not anticipated to be significant due to the current status of the project site, which is an active agricultural field. An Endangered Resources (ER) Review was conducted for the project area. This review found that one state special concern bird may be present within the project area, but habitat, if present, is limited. While recommended actions for this species are outlined in the EIS, DNR staff did not feel it necessary to propose an associated order condition requiring the applicant to implement the recommended actions.

DNR witness Geri Radermacher suggested that the Commission order certain mitigation and avoidance measures to minimize and avoid impacts to wetlands and waterways. (PSC REF#: 533399.) Those conditions are adopted by this Final Decision and are listed below, in the discussion of project-specific order conditions.

Construction of the RICE facilities at Alternative Site 2 will constitute a major modification of an existing major source, and a Prevention of Significant Deterioration (PSD) permit will be required from DNR. The project will be subject to Best Available Control Technology (BACT) requirements for carbon monoxide (CO), oxides of nitrogen (NOx), particulate matter (PM), PM10, PM2.5, volatile organic compounds (VOC), and greenhouse gas (GHG) emissions, and the applicant must submit a new air permit application for the approved site. The DNR's draft air pollution control construction permit for the project will include emission controls sufficient to ensure compliance with state and federal standards, including New Source Performance Standards (NSPS) and National Emission Standards for Hazardous Air Pollutants (NESHAP), with the National Ambient Air Quality Standards (NAAQS) for each criteria pollutant.

The DNR has not yet made a preliminary determination as to whether the proposed project is approvable under the statutory requirements for air permit approvability. Once the DNR has completed its analysis and preliminary determination on the approvability of the air permit application, it will provide an opportunity for public comment on those documents and consider public comments prior to making a final decision on the air permit application for the proposed project.

After considering the substantial record, the Commission finds that the project is in the public interest considering environmental factors, that the project will not have an undue adverse impact on environmental values. (PSC REF#: 527759.) The statutory criteria of Wis. Stat. § 196.491(3)(d)4. have been met. To the extent the project will have adverse environmental impacts, these impacts can be mitigated by conditions imposed by this Final Decision.

DNR Permits

Protection of air and water resources is the subject of several DNR permits that are intended to establish limits to avoid or reduce significant adverse impacts. While the Commission has no jurisdiction over DNR permits, as described above it is interested in the status of necessary DNR permits that significantly affect the ability of the project, if approved, to operate. DNR must issue certain water permits within 30 days after the issuance of a Final Decision. Wis. Stat. § 30.025(4). The project area was evaluated for wetlands and waterway impacts and as the project is being sited and will be constructed to avoid regulated impacts to waterways, it will not require permit authorization under Wis. Stat. Ch. 30. A total of 14 wetlands were identified within the approved Alternative Site 2 and the project will require permit authorization under Wis. Stat. § 281.36. as the project construction activities will result in regulated permanent and regulated temporary wetland impact will occur. Storm water and erosion control permits would be required prior to the start of construction.

In considering CPCN applications, the Commission "may not determine that the proposed facility will have an undue adverse impact on [environmental values] because of the impact of air pollution if the proposed facility will meet the requirements of ch. 285." Wis. Stat. § 196.491(3)(d)4. Wisconsin Stat. ch. 285 addresses "Air Pollution" and is enforced by DNR.

The applicant must obtain an air pollution control permit from the DNR, which partners with the EPA for administering applicable provisions of the CAA. The Wisconsin DNR has responsibility for review of permit applications and issuance of air pollution control permits in accordance with the CAA and Wisconsin statutes. An initial discussion of the anticipated air emissions impacts associated with the proposed project was provided in the testimony of DNR staff witness David Minkey. (PSC REF#: 533398.)

A list of all anticipated permits, from DNR and other entities, is included in the application and the EA. This Final Decision includes a standard order condition requiring the applicant to obtain all necessary federal, state, and local permits prior to commencement of construction.

Land Use and Development Plans

Wisconsin Stat. § 196.491(3)(d)6. requires that a proposed generation facility not "unreasonably interfere with the orderly land use and development plans for the area involved." The Town of Paris asserted that siting the project at the Proposed Site would unreasonably interfere with the orderly land use and development plans of the Town, and urged the Commission to select Alternative Site 2, if approving the CPCN. Given that the Commission is selecting Alternative Site 2, the project will be located on land owned by the applicant that is adjacent to an existing electric generation facility. The Commission recognizes that the proposed project, as would any major construction project, will create impacts on the land use and development plans of affected areas. It nonetheless finds that the proposed project will not unreasonably interfere with the orderly land use and development plans of the project area.

Brownfields Consideration

Wisconsin Stat. § 196.491(3)(d)8. requires that for a large electric generation facility, "brownfields, as defined in Wis. Stat. § 238.13 are used to the extent practicable." The Proposed

Site currently hosts natural gas utility infrastructure; Alternative Site 1 currently hosts solar panels; and Alternative Site 2 is adjacent to an existing electric generation facility. None of these sites meet the state or federal definition of a brownfield site. Commission staff did not identify any evidence in the record indicating the existence of any nearby brownfield site, under either the state or federal definition, of a large enough size to accommodate the proposed project. The Commission finds that the applicant's siting criteria was reasonable, that no brownfield sites are practicable for the applicant's proposed project, and that the requirement under Wis. Stat. § 196.491(3)(d)8. has been satisfied.

Project Cost and Construction Schedule

Construction of the proposed project, as authorized by this Final Decision, is estimated to cost $279.6 million, excluding AFUDC as discussed in the application. (PSC REF#: 496790 confidential, PSC REF#: 496791 public.) An approximate breakdown of the estimated $279.6 million for the project is as follows:

Project Cost	
EPC Contractor	$182,100,000
Equipment Supplier	$84,000,000
Owner	$13,500,000
Total Project Costs	**$279,600,000**

Construction of the proposed project is expected to take place in shortly after issuance of this Final Decision, with an in-service date of July 2026.

Discussion of Order Conditions

In issuing a CPCN for a public utility, the Commission has the authority under Wis. Stat. §§ 196.395 and 196.491(3)(e) to impose conditions that it finds to be reasonable and necessary.

Commission staff, the applicant, and intervenors, presented various order conditions for consideration. In addition, the Commission adopts one order condition of its own.

Standard Order Conditions

Typically, the Commission's Final Decision for an electrical generation construction project includes general conditions relating to the authorized construction, reporting, and other matters. Commission staff suggested similar conditions of approval for the Commission's consideration in this proceeding. The Commission finds it reasonable to impose the general order conditions as suggested by staff, with modifications as discussed below, and with the exception of the suggested condition related to eminent domain rights.[7]

The applicant questioned the necessity of the standard order condition requiring the applicant to submit quarterly reports related to local labor recruitment efforts. The applicant asserted that it had a strong relationship with labor and are already working with Wisconsin contractors and labor unions to ensure available local craft labor for the project. The Commission deems it reasonable to require the applicant to provide quarterly reports on related to local labor recruitment efforts. Given the applicant's representation of having strong working relationships with local labor and contractors, the applicant should have no issues complying with these reporting requirements.

Another standard condition opposed by the applicant is the requirement that an applicant mitigate impacts to line-of-sight communications if a landowner shows actual disruption to broadcast communications post-construction. The applicant opposed this condition, stating it was unaware of any Wisconsin power plants, outside of wind facilities, that had impacted broadcast communications. Rebuttal-WEPCO-Maurer-17 (PSC REF#: 530089). The Commission acknowledges the lack of data on line-of-sight broadcast interruptions caused by

[7] The eminent domain rights order condition is intended for merchant plants. The Commission declines to impose that condition here, as it does not apply to public utilities with eminent domain rights.

this type of construction. However, rather than removing the condition altogether, the Commission prefers to take a measured approach, instead adding "to the extent practicable" to the condition to provide flexibility in the event that interruptions occur.

The applicant opposed the cost overrun condition requiring the applicant to report on any and all increases to the project's estimated project cost as provided in its application, instead proposing that the applicant should notify the Commission only if it discovered or identified that the project cost may exceed the estimated cost by more than 10 percent. Rebuttal-WEPCO-Stasik-18-19. The Commission rejects the applicant's proposal for a 10 percent tolerance threshold and notes that the Commission moved away from using percentage thresholds in 2023. The Commission further notes that the condition is only a notification requirement and does not pre-judge cost recovery. The Commission deems it reasonable to impose the cost reporting condition as originally suggested by Commission staff.

The applicant opposed the standard stray voltage testing condition. The applicant argued that the condition was unnecessary because the applicant is a distribution utility obligated to follow rules already in place regarding stray voltage. Commission staff offered minor revisions to the standard language to address this point, but continued to recommend the condition. Direct-PSC-Golden-22 (PSC REF#: 527133). The Commission deems it reasonable to require the applicant to make stray voltage testing available at each agricultural confined animal operation within one half-mile of the project facilities. The condition is standard in electric construction projects and that its removal would be inconsistent with the Commission's prior decisions.

Finally, due to the uncertainty surrounding costs associated with the selection of Alternative Site 2, the Commission finds it is reasonable to modify the standard final actual cost

reporting requirement as follows. The applicant asserted that Alternative Site 2 would cost between $17.7-$23.2 million more than original estimates for the Proposed Site. For transparency and understanding of actual costs associated with this site selection, the Commission finds that it is reasonable to modify the standard order condition for final cost reporting to require that the applicant to provide the incremental final actual costs related to the use of Alternative Site 2 for the following categories: extension of warranty coverage on the engines and additional storage and handling fees; procurement and transporting equipment, reperforming site specific design work and geotechnical studies, and inflation; and owner's costs associated with land acquisition which has already been incurred, permit modifications, inflation and insurance costs.

Project-Specific Conditions

Pursuant to its authority under Wis. Stat. §§ 196.395 and 196.491(3)(e), the Commission may impose such project-specific conditions within its authority that it deems necessary for approval of a CPCN.

Commission staff and several intervenors proposed conditions relating to cost overruns. Commission staff suggested an order condition for the Commission's consideration requiring the applicant to provide a summary of competitive bids for the project, originally as a stand-alone reporting condition. The applicant asserted that this condition would be administratively burdensome and would not benefit cost controls related to the project. In response to these concerns, Commission staff revised its suggested condition by incorporating this requirement into the standard order condition for quarterly progress reports. Surrebuttal-PSC-Golden-5-7 (PSC REF#: 532297). The Commission adopts a modified version of the revised language

proposed by Commission staff and determines that it is reasonable to require the applicant to provide summaries of competitive bids obtained for the project. The Commission incorporates this requirement into the quarterly reporting condition, with the language "as applicable" to mitigate administrative burden.

CUB witnesses Singletary and Burgess also suggested order conditions for the Commission's consideration. CUB witness Corey Singletary recommended that the Commission require the applicant to notify the Commission within 30 days of receipt of a Change Order Request; the submission of a Change Order Notice; or the application of the required Change Order provisions within the Engineering, Procurement, and Construction (EPC) Agreement if such change is likely to increase the total cost of the project or affect the in-service date of the project. Direct-CUB-Singletary-r-14-15 (PSC REF#: 533664). Applicant witness Mark Maurer characterized this proposal as micromanaging and asserted they would not be helpful. Rebuttal-WEPCO-Maurer-11-12 (PSC REF#: 530089). The applicant witness Richard Stasik argued they were unnecessary and overly broad. Rebuttal-WEPCO-Stasik-r-15-17 (PSC REF#: 534398). The Commission appreciates the intervenor's efforts to address issues related to cost overruns and acknowledges the importance of change orders as components of construction project management. However, the Commission deems the suggested condition unnecessary for approval of the project because the standard order conditions already require the applicant to notify the Commission of cost increases and in-service date changes and to obtain further approval for significant scope changes addresses these concerns, rendering the conditions suggested by CUB duplicative. Instead, the Commission opts to investigate the topic of change orders as they relate to project cost overruns in a separate, future generic investigation.

CUB witness Singletary also recommended the inclusion of an order condition requiring the applicant to notify the Commission if the applicant becomes aware that the in-service date of the proposed project would be delayed by 30 or more days or if a delay would affect resource accreditation by MISO. Direct-CUB-Singletary-r-14 (PSC REF#: 533664). The applicant witness Mark Maurer also characterized this proposal as micromanagement. Rebuttal-WEPCO-Maurer-11-12 (PSC REF#: 530089). While the Commission notes that the proposed condition specifically addresses MISO resource accreditation determination delays, the Commission finds the suggested condition to be unnecessary and duplicative due to the standard order condition requiring quarterly progress reports on the status of construction. The Commission additionally notes that the applicant has an incentive to bring generators online as quickly as possible.

CUB witness Burgess recommended the inclusion of order conditions that would restrict cost recovery until certain milestones are met regarding projected new load growth, require the applicant to conduct competitive solicitations for future capacity resources in lieu of the project, and require the applicant to pursue additional demand-side management. Direct-CUB-Burgess-7-8 (PSC REF#: 527429). The applicant objected to these conditions, pointing out that the Commission has never conditioned cost recovery on milestones such as those suggested by CUB. Surrebuttal-WEPCO-Stasik-8 (PSC REF#: 532307). The Commission does not find it is necessary to do so here.

Witness Singletary recommended that the Commission impose an order condition explicitly defining circumstances constituting a *force majeure* claim as such claims are challenging to evaluate in rate proceedings. Direct-CUB-Singletary-13-14 (PSC REF#: 533663 confidential, PSC REF#: 533664 public). The applicant witness Richard Stasik objected, stating

that the *force majeure* clause contained in the EPC agreement for the project was materially identical to those contained in the contracts for its three previous RICE projects and that the CUB definition was not the norm on the market. Rebuttal-WEPCO-Stasik-r-17-18 (PSC REF#: 534398). The Commission finds the suggested order condition language to be a premature and over-prescriptive definition and deems it unnecessary for approval of the proposed project.

DNR staff witness Geri Radermacher recommended the following conditions to help avoid indirect impacts to wetlands and waterways during construction of this project:

- Prior to construction, install signage at wetland and waterway boundaries located within the project construction area to alert construction crews to not work within or access across these areas unless permit coverage was granted for the area.
- Develop and implement a Storm Water Erosion Control Plan and a Stormwater Management Plan that meet or exceed the standards found in Wis. Admin. Code Chs. 3 NR 216 and NR 151.
- Implement the technical standards developed per Subchapter V of Wis. Admin. Code Ch. NR 151.
- Install all site-specific sediment and erosion control measures and devices prior to any construction activities commencing and regularly inspect and maintain them through all construction and restoration phases.
- Provide copies of all plans and environmental documents to construction crews and inspectors. Plans should clearly label the locations of wetlands and waterways and include language stating vehicle access, storage of materials, grading, and all other construction activities are not permissible within these areas. Plans should also

clearly label where sediment and erosion control measures and devices need to be installed if working adjacent to wetlands and waterways.

- Implement a construction sequencing plan that minimizes the amount of land disturbed or exposed (susceptible to erosion) at one given time across the project.
- Vegetate disturbed areas and areas of exposed soil as soon as possible and seed with a cover crop and/or native seed mix to minimize erosion potential and prevent the establishment of invasive species.
- Prepare and implement an invasive species management plan that identifies known areas of invasive species populations and includes specific protocols to minimize the spread of invasive species.
- Leave existing vegetative buffers in place to the maximum extent practicable.
- Avoid the use of herbicide in wetlands and near waterways, or utilize herbicides approved for use in aquatic environments.

Direct-DNR-Radermacher-4-6 (PSC REF#: 533399). The applicant did not oppose these order conditions. The Commission finds it reasonable to include these measures as conditions for the approval of the project.

The Commission also adopts a project-specific order condition to mitigate the uncertainty surrounding the forecasted I-95 corridor load attributable to a single customer, the Very Large Customer. The law requires the Commission to consider whether the size of the generation project the applicant is requesting to build is reasonable to meet the needs of the public for an adequate supply of energy. Wis. Stat. § 196.491(3)(d)2. This prevents a utility from overbuilding, and customers overpaying for a need that is in excess of future requirements. In

prior construction dockets, the Commission has considered the normal load growth or need attributable to thousands of individual customers in assessing whether a generation plant is appropriately sized. The risk presented by inaccurate forecasting for that type of anticipated load is moderated by the number of customers involved. When the entirety of a forecasted new load rests on the actions of a single customer, the risk is greater. The Commission finds that this increased risk and the significant costs associated with the project make it appropriate to require a higher level of assurance that the anticipated large load will materialize, and the imposition of stronger safeguards. The degree of certainty of the anticipated load was a central focus of party testimony and Commission consideration in this docket, and the Commission and its staff rigorously reviewed the issue.

The reasonable need of the public for utility service is the key standard applicable to this issue. The applicant is statutorily obligated to serve new load pursuant to Wis. Stat. § 196.03(1), which requires public utilities to "furnish reasonably adequate service and facilities." It is well-settled Wisconsin law that, in enacting this and other laws regulating utilities, "the legislature has determined that the public interest requires that public utilities shall, within their undertaking, furnish their service to all who reasonably require the same." *Northern States Power Co. v. Public Serv. Comm'n*, 246 Wis. 215, 228, 16 N.W.2d 790, 795 (1944). "All" includes more than just existing utility customers. It also includes new ones, including new businesses like the large load customer here. To conclude otherwise would prevent growth entirely. And as relevant to the facts of this CPCN application, a utility may not connect new loads to its system in a way that jeopardizes reliability or reasonably adequate service to existing customers.

As noted above in the modeling discussion above, certain modeling sensitivities provided by the applicant, including reduced I-94 corridor load growth under certain circumstances, did not include the proposed project as part of the least-cost generation portfolio. The applicant has provided some reassurances in the record here and in other dockets as to the certainty of the future load, including tariffs and service agreements. The agreement currently in place to protect consumers is one of multiple elements currently under development by the applicant, and these safeguards helped inform the Commission's reasonable need determination.

However, in consideration of the valid concerns expressed in the record and shared by the Commission as discussed here, the Commission finds it reasonable to supplement the applicant's affirmations regarding risk with an order condition requiring notification in the event the Very Large Customer reduces its demand. This order condition will allow the Commission to understand in a timely fashion how such a decrease interacts with the assurances provided in the applicant's testimony and evidence. It will also ensure that customers will not bear the risk of subsidizing projects when they are not needed. Based on the facts of this case, transparency and protection of the public interest require this added protection. The two elements of this condition are a notification requirement and a guarantee that, in the event of a decrease in load forecast, the applicant implements all appropriate customer protection measures detailed in its application, testimony and exhibits, as well as any approved tariff in response to that decrease.

Given that project being driven in large part by the anticipated load increase due to only one customer, the Very Large Customer, the Commission finds it reasonable to require that, in the event that the Very Large Customer's load forecast significantly decreases, the applicant

notify the Commission within 30 days and take all appropriate customer protection measures detailed in applicant testimony and exhibits or any approved future tariff.

Conclusion

It is established law in Wisconsin that issuing a CPCN is a legislative determination involving public policy and statecraft. *Clean Wisconsin, Inc. v. Pub. Serv. Comm'n of Wis.*, 2005 WI 93, ¶ 35, 282 Wis. 2d 250, 700 N.W.2d 768. Wisconsin Stat. § 196.491 assigns to the Commission the role of weighing and balancing many conflicting factors in assessing CPCN applications. In order to determine whether construction of a new electric generating facility is reasonable and in the public interest, the Commission must not just apply the priority list in Wis. Stat. § 1.12(4), but also must examine the conditions written into that law and consider the purpose of the legislation.

These statutes require that when the Commission reviews a CPCN generation facility application, it must consider the reasonable needs of the public for an adequate supply of electric energy, alternatives, individual hardships, engineering, economics, safety, reliability, a host of environmental factors, the effect on electric rates, any interference with orderly local land use and development plans, and potential impacts to wholesale electric competition. Ultimately, the Commission must determine whether granting or denying a CPCN for a proposed project will promote the public health and welfare. After weighing all of these factors and all of the conditions it is imposing, the Commission finds, for the reasons set forth in this Final Decision and administrative record developed for this proceeding, that issuing a CPCN is in the public interest considering its assessment of the reasonable needs of the public for an adequate supply of electric energy, alternatives, individual hardships, engineering, economics, safety, reliability, a

host of environmental factors, the effect on electric rates, any interference with orderly local land use and development plans, and potential impacts to wholesale electric competition.

Certificate

The Commission grants the applicant a CPCN for construction of the proposed project, as described in the application and as modified by this Final Decision, at a total estimated cost of $279.6 million.

Order

1. The applicant is authorized to construct the proposed electric generation facility at a total estimated cost of $279.6 million excluding AFUDC, as described in the application and data request responses, and as modified by the Final Decision.

2. The applicant is authorized to accrue 100 percent AFUDC provided that the calculation of AFUDC shall not be based on a cost greater than $279.6 million.

3. The Commission, consistent with its past practice, shall review in a future rate proceeding the recoverability of costs associated with the proposed project. If it is discovered or identified that the project cost, including *force majeure* costs, may exceed the estimated cost excluding AFUDC, the applicant shall, within 30 days of when it becomes aware of the possible change or cost increase, notify the Commission of the accounts or categories where the costs deviate from those authorized and shall itemize and segregate those costs by major accounts and provide sufficient documentation to support and explain the reasons for such deviations.

4. Should the scope, design, or location of the proposed project change significantly, the applicant shall notify the Commission within 30 days of becoming aware of possible

changes. The applicant shall obtain approval from the Commission before proceeding with any substantial change in the scope, design, size, or location of the approved project.

5. In the event that the Very Large Customer's load forecast significantly decreases, the applicant shall notify the Commission within 30 days and take all appropriate customer protection measures detailed in applicant's testimony and exhibits, or any approved future tariff.

6. If the applicant cancels the project or enters into any arrangement with another party regarding ownership or operation of the proposed facilities, the applicant shall provide prior notice to the Commission.

7. All commitments made by the applicant in its application, subsequent filings, and the provisions of the Final Decision shall apply to the applicant, any agents, contractors, successors, assigns, corporate affiliates, and any future owners or operators of the project.

8. The applicant shall submit to the Commission the final actual costs, segregated by major accounts, within one year after the in-service date. For those accounts or categories, where actual costs deviate significantly from those authorized, the applicant shall itemize and explain the reasons for such deviations in the final cost report. The applicant shall provide the incremental final project costs related to the use of Alternative Site Two for the following categories: extension of warranty coverage on the engines and additional storage and handling fees; procurement and transporting equipment, reperforming site specific design work and geotechnical studies, and inflation; and owner's costs associated with land acquisition which has already been incurred, permit modifications, inflation and insurance costs.

9. Beginning within 30 days after the end of the quarter during which the Final Decision is signed and served, and within 30 days of the end of each quarter thereafter and

continuing until the authorized facilities are fully operational, the applicant shall submit quarterly progress reports to the Commission that include all of the following:

a. The date that construction commences;

b. Major construction and environmental milestones, including permits obtained, by agency, subject, and date;

c. Summaries of the status of construction, the anticipated in-service date, and the overall percent of physical completion;

d. The date that the facilities are placed in service;

e. As applicable, a summary of competitive bids received within the quarter, if any, for work to be performed and equipment to be procured as part of the project, as applicable;

f. Its efforts, and the efforts of its contractors, to recruit Wisconsin residents to fill employment opportunities created by the construction of the proposed project;

g. Its efforts to collaborate with state registered apprenticeship programs; and

h. The actual number of Wisconsin residents and out-of-state workers employed on-site to construct the proposed project.

10. The applicant shall make available stray voltage testing at each agricultural confined animal operation within one half-mile of the project facilities, prior to commencing any project construction activity that may interfere with testing and after the project is energized. The applicant shall work with the farm owner to rectify any identified stray voltage problem

arising from the construction or operation of the project, in compliance with the Commission's stray voltage protocol. Prior to testing, the applicant shall work with the applicable Commission staff to determine where and how it will conduct the stray voltage measurements. The applicant shall report the results of its testing to Commission staff in writing.

11. The CPCN is valid only if construction commences no later than one year after the latest of the following dates:

a. The date the Final Decision is served;

b. The date when the applicant has received every federal and state permit, approval, and license that is required prior to commencement of construction by construction spread under the CPCN;

c. The date when the deadlines expire for requesting administrative review or reconsideration of the CPCN and of the permits, approvals, and licenses described in par. (b);

d. The date when the applicant receives the Final Decision, after exhaustion of judicial review, in every proceeding for judicial review concerning the CPCN and the permits, approvals, and licenses described in par. (b).

12. If the applicant has not begun on-site physical construction of the authorized Project within one year of the time period specified by this Final Decision, the Certificate authorizing the approved Project for which construction has not commenced shall become void unless the applicant:

a. files a written request for an extension of time with the Commission before the effective date on which the Certificate becomes void; and

b. is granted an extension by the Commission.

13. If the applicant has not begun on-site physical construction of the authorized project and has not filed a written request for an extension before the date that this Certificate becomes void, the applicant shall inform the Commission of those facts within 20 days after the date on which the Certificate becomes void.

14. The applicant shall perform post-construction noise studies as described in the most current version of the PSC Noise Measurement Protocol. The applicant shall work with Commission staff to determine appropriate locations and conditions for the noise measurements. In the event of a substantial change to the proposed facility layout, the applicant shall confer with Commission staff to determine if a new pre-construction noise study must be completed. The applicant shall file a copy of the post construction noise study report with the Commission.

15. To the extent practicable, the applicant shall mitigate impacts to line-of-sight communications and landowners who can show disruption to broadcast communications post construction.

16. The applicant shall obtain all necessary federal, state, and local permits prior to commencement of construction.

17. The applicant shall conduct an updated ER Review closer to the start date of construction of the project (no more than one year prior to construction start).

18. Prior to construction, the applicant shall install signage at wetland and waterway boundaries that are within the project construction area to alert construction crews to not work within or access across these areas unless permit coverage was granted for the area.

19. The applicant shall develop and implement a Storm Water Erosion Control Plan and a Storm Water Management Plan that meet or exceed the standards found in Wis. Admin. Code chs. NR 216 and NR 151. The applicant shall implement the technical standards developed per Subchapter V of Wis. Admin. Code ch. NR 151.

20. The applicant shall install all site-specific sediment and erosion control measures and devices applicable to a specific work area prior to any construction activities commencing and regularly inspect and maintain them through all construction and restoration phases.

21. The applicant shall provide copies of all plans and environmental documents to responsible construction crews and inspectors. These plans should clearly label the locations of wetlands and waterways in allowed work or traffic areas and include language stating vehicle access, storage of materials, grading, and all other construction activities are not permissible within these areas. Plans should also clearly label where sediment and erosion control measures and devices need to be installed if working adjacent to wetlands and waterways.

22. The applicant shall implement a construction sequencing plan that minimizes the amount of land disturbed or exposed (susceptible to erosion) at one given time across the project.

23. The applicant shall vegetate disturbed areas and areas of exposed soil as soon as possible and seed with a cover crop and/or native seed mix to minimize erosion potential and prevent the establishment of invasive species.

24. The applicant shall prepare and implement an invasive species management plan that identifies known areas of invasive species populations and includes specific protocols to minimize the spread of invasive species.

25. The applicant shall leave existing vegetative buffers in place to the maximum extent possible.

26. The applicant shall avoid the use of herbicide in wetlands and near waterways, or utilizing herbicides approved for use in aquatic environments.

27. The Final Decision takes effect one day after the date of service.

28. Jurisdiction is retained.

Dated at Madison, Wisconsin, the 2nd day of July, 2025.

By the Commission:



Cru Stubley
Secretary to the Commission

CS:AM:arw:dsa DL:02075827

See attached Notice of Rights

Docket 6630-CE-316

PUBLIC SERVICE COMMISSION OF WISCONSIN
4822 Madison Yards Way
P.O. Box 7854
Madison, Wisconsin 53707-7854

NOTICE OF RIGHTS FOR REHEARING OR JUDICIAL REVIEW, THE TIMES ALLOWED FOR EACH, AND THE IDENTIFICATION OF THE PARTY TO BE NAMED AS RESPONDENT

The following notice is served on you as part of the Commission's written decision. This general notice is for the purpose of ensuring compliance with Wis. Stat. § 227.48(2), and does not constitute a conclusion or admission that any particular party or person is necessarily aggrieved or that any particular decision or order is final or judicially reviewable.

PETITION FOR REHEARING

If this decision is an order following a contested case proceeding as defined in Wis. Stat. § 227.01(3), a person aggrieved by the decision has a right to petition the Commission for rehearing within 20 days of the date of service of this decision, as provided in Wis. Stat. § 227.49. The date of service is shown on the first page. If there is no date on the first page, the date of service is shown immediately above the signature line. The petition for rehearing must be filed with the Public Service Commission of Wisconsin and served on the parties. An appeal of this decision may also be taken directly to circuit court through the filing of a petition for judicial review. It is not necessary to first petition for rehearing.

PETITION FOR JUDICIAL REVIEW

A person aggrieved by this decision has a right to petition for judicial review as provided in Wis. Stat. § 227.53. In a contested case, the petition must be filed in circuit court and served upon the Public Service Commission of Wisconsin within 30 days of the date of service of this decision if there has been no petition for rehearing. If a timely petition for rehearing has been filed, the petition for judicial review must be filed within 30 days of the date of service of the order finally disposing of the petition for rehearing, or within 30 days after the final disposition of the petition for rehearing by operation of law pursuant to Wis. Stat. § 227.49(5), whichever is sooner. If an *untimely* petition for rehearing is filed, the 30-day period to petition for judicial review commences the date the Commission serves its original decision.[8] The Public Service Commission of Wisconsin must be named as respondent in the petition for judicial review.

If this decision is an order denying rehearing, a person aggrieved who wishes to appeal must seek judicial review rather than rehearing. A second petition for rehearing is not permitted.

Revised: March 27, 2013

[8] *See Currier v. Wisconsin Dep't of Revenue,* 2006 WI App 12, 288 Wis. 2d 693, 709 N.W.2d 520.

APPENDIX A

PUBLIC SERVICE COMMISSION OF WISCONSIN
(Not a party but must be served per Wis. Stat. § 227.53)
4822 MADISON YARDS WAY
PO BOX 7854
MADISON, WI 53707

CITIZENS UTILITY BOARD
COREY SINGLETARY
625 NORTH SEGOE ROAD STE 101
MADISON WI 53705
USA
SINGLETARY@CUBWI.ORG

CITIZENS UTILITY BOARD
STEVE KIHM
625 NORTH SEGOE ROAD STE 101
MADISON WI 53705
USA
KIHM@CUBWI.ORG

CITIZENS UTILITY BOARD
THOMAS CONTENT
625 NORTH SEGOE ROAD STE 101
MADISON WI 53705
USA
CONTENT@WISCUB.ORG

CITY OF MILWAUKEE
THOMAS D MILLER
200 EAST WELLS ST ROOM 800
MILWAUKEE WI 53202
USA
TMILLER@MILWAUKEE.GOV

CLEAN WISCONSIN
BRETT KORTE
634 WEST MAIN STREET STE 300
MADISON WI 53703
USA
BKORTE@CLEANWISCONSIN.ORG

CLEAN WISCONSIN
KATHRYN NEKOLA
634 WEST MAIN STREET STE 300
MADISON WI 53703
USA
KNEKOLA@CLEANWISCONSIN.ORG

KENOSHA COUNTY
ANDY BUEHLER
19600 75TH STREET STE 185-3
BRISTOL WI 53104
USA
ANDY.BUEHLER@KENOSHACOUNTY.ORG

KENOSHA COUNTY
JENNIFER J KOPP
912 56TH STREET LL13
KENOSHA WI 53140
USA
JENNIFER.KOPP@KENOSHACOUNTY.ORG

KENOSHA COUNTY
SAMANTHA KERKMAN
1010 56TH STREET
KENOSHA WI 53140
USA
SAMANTHA.KERKMAN@KENOSHACOUNTY.ORG

KENOSHA COUNTY
SHELLY BILLINGSLEY
19600 75TH STREET STE 122-1
BRISTOL WI 53104
USA
SHELLY.BILLINGSLEY@KENOSHACOUNTY.ORG

PUBLIC SERVICE COMMISSION OF WISCONSIN
BERT CHEE
4822 MADISON YARDS WAY PO BOX 7854
MADISON WI 53707
USA
BERT.CHEE@WISCONSIN.GOV

Docket 6630-CE-316

PUBLIC SERVICE COMMISSION OF WISCONSIN
SOPHIA ROGERS
4822 MADISON YARDS WAY PO BOX 7854
MADISON WI 53707
USA
SOPHIA.ROGERS1@WISCONSIN.GOV

PUBLIC SERVICE COMMISSION OF WISCONSIN
STEPHANIE BEDFORD
4822 MADISON YARDS WAY PO BOX 7854
MADISON WI 53707
USA
STEPHANIE.BEDFORD1@WISCONSIN.GOV

RENEW WISCONSIN
ANDREW KELL
214 NORTH HAMILTON STREET STE 300
MADISON WI 53703
USA
ANDREW@RENEWWISCONSIN.ORG

RENEW WISCONSIN
SHERIF HALAWEISH
214 NORTH HAMILTON STREET STE 300
MADISON WI 53703
USA
SHERIF@RENEWWISCONSIN.ORG

THEODORE EIDUKAS
WISCONSIN ELECTRIC POWER COMPANY
231 W MICHIGAN STREET P401
MILWAUKEE WI 53203
USA
PSCWNOTIFICATIONS@WECENERGYGROUP.COM

TOWN OF PARIS
BOARDMAN & CLARK LLP
1 SOUTH PINCKNEY STREET STE 410 PO BOX 927
MADISON WI 53701
USA
JSMITH@BOARDMANCLARK.COM

Docket 6630-CE-316

TOWN OF PARIS
BOARDMAN & CLARK LLP
1 SOUTH PINCKNEY STREET STE 410 PO BOX 927
MADISON WI 53701
USA
RHEINEMANN@BOARDMANCLARK.COM

TOWN OF PARIS
EMILIE GASTALDI
16607 BURLINGTON ROAD
UNION GROVE WI 53182
USA
EMILIE.GASTALDI@TOWNOFPARIS.ORG

TOWN OF PARIS
JOHN HOLLOWAY
16607 BURLINGTON ROAD
UNION GROVE WI 53182
USA
JOHN.HOLLOWAY@TOWNOFPARIS.ORG

TOWN OF PARIS
PRUITT EKES & GEARY SC
245 MAIN STREET STE 404
RACINE WI 53403
USA
CGEARY@PEGLAWFIRM.COM

WISCONSIN ELECTRIC POWER COMPANY
CATHERINE PHILLIPS
231 WEST MICHIGAN
MILWAUKEE WI 53203
USA
CATHERINE.PHILLIPS@WECENERGYGROUP.COM

WISCONSIN ELECTRIC POWER COMPANY
QUARLES AND BRADY LLP
300 NORTH LASALLE DRIVE STE 4000
CHICAGO IL 60654
USA
ELIZABETH.RAKOCZY@QUARLES.COM

WISCONSIN ELECTRIC POWER COMPANY
QUARLES AND BRADY LLP
411 EAST WISCONSIN AVE STE 240
MILWAUKEE WI 53202
USA
MACKENZIE.GUTNER@QUARLES.COM

WISCONSIN ELECTRIC POWER COMPANY
QUARLES AND BRADY LLP
411 EAST WISCONSIN AVE STE 2400
MILWAUKEE WI 53202
USA
LAUREN.ROSSO@QUARLES.COM

WISCONSIN ELECTRIC POWER COMPANY
QUARLES AND BRADY LLP
411 EAST WISCONSIN AVE STE 2400
MILWAUKEE WI 53202
USA
PATRICK.PROCTOR-BROWN@QUARLES.COM

WISCONSIN ELECTRIC POWER COMPANY
QUARLES AND BRADY LLP
411 EAST WISCONSIN AVENUE STE 2400
MILWAUKEE WI 53202
USA
JOE.WILSON@QUARLES.COM

WISCONSIN ELECTRIC POWER COMPANY
RICHARD STASIK
231 WEST MICHIGAN
MILWAUKEE WI 53203
USA
RICHARD.STASIK@WECENERGYGROUP.COM

WISCONSIN ELECTRIC POWER COMPANY (WEPCO)
QUARLES AND BRADY LLP
411 EAST WISCONSIN AVENUE STE 2400
MILWAUKEE WI 53202
USA
JAMES.GOLDSCHMIDT@QUARLES.COM

WISCONSIN INDUSTRIAL ENERGY GROUP
ECONWERKS LLC
643 POPLAR WAY
VERONA WI 53593
USA
RANDAL@ECONWERKS.COM

WISCONSIN INDUSTRIAL ENERGY GROUP
HEINZEN LAW SC
PO BOX 930370
VERONA WI 53593
USA
STEVE.HEINZEN@HEINZENLAW.COM

WISCONSIN INDUSTRIAL ENERGY GROUP
TODD STUART
44 EAST MIFFLIN STREET STE 404
MADISON WI 53703
USA
TSTUART@WIEG.ORG

WISCONSIN LOCAL GOVERNMENT CLIMATE COALITION
MURPHY DESMOND SC
33 E MAIN STREET STE 500
MADISON WI 53703
USA
MFRANK@MURPHYDESMOND.COM